

Assam Education Department Rules and Orders

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State of Assam - Act

Assam Education Department Rules and Orders

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Assam Education Department Rules and Orders

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Assam Education Department Rules and Orders

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Chapter I

Preliminary

1.

Definitions.

- 1. "Government" means the Government of Assam.

2.

"University" means the Guhati University unless the context otherwise provides.

3.

"Department" means the Department of Public Instruction of the Government of Assam.

4.

"The Constitution" means the Constitution of India.

5.

"The Autonomous areas" means the Tribal areas as defined in Article 20 read with Article 1 of the Sixth Schedule to the Constitution.

6.

"District Officer" and "Sub-divisional Officer" means the Civil Officers in charge of a District or a sub-division as the case may be.

7.

"Director" or "Director of Public Instruction" means the Director of Public Instruction of the Government of Assam.

8.

"Assistant Director of Public Instruction" and "Additional Assistant Director of Public Instruction" means the director of Public Instruction of these grades.

9.

"Inspector of Schools Assistant Inspector of Schools, Deputy Inspector of Schools, Sub-Inspector of Schools, and Assistant Sub-Inspector of Schools" mean the Inspectors of Schools of the respective grades.

10.

"Institution" means an educational institution of any grade or class specified in Rule 15.

11.

"A girls institution" means an educational institution exclusively meant for girls and "a boys' institution" means an educational institution ordinarily meant for boys. Educational institution with provision for co-education is included in "boys institution".

12.

Institution for the management and maintenance of which the Government or any public body such as-the Guhati University the State Primary Education Board, a Sub-divisional Primary Education Board, a Local Board, a Municipality Board or any such body as is constituted by law for the purpose of imparting and managing education of any standard or standards whether exclusively or as a part of its other functions is wholly responsible are called public institutions or institutions under Public management and all other institutions are called private institutions or institutions under private management.

13.

Public Institutions for the management and maintenance of which Government is wholly responsible are called Government institutions and private institutions receiving grant-in-aid from Government are called Government aided institutions.

14.

Public schools wholly managed and maintained by a Local or Municipal Board are referred to in these Rules as Board's schools and those receiving grant-in-aid from these Boards as Board's aided schools.

15.

Institutions are classified according to the nature of instruction they impart and their grades are as follows :

Schools

General

PrimarySecondary

Special

Training SchoolsTechnical SchoolsProfessional

SchoolsOther Special Schools

Arts

First GradeSecond Grade

Colleges

Professional

Training CollegesOther Professional Colleges.

Oriental

Sanskrit CollegesSenior MadrassasTitle Madrassas

16.

"Primary Schools" mean the schools teaching up to the primary stage education through the medium of vernacular.

17.

"Middle schools" mean the schools teaching up to the middle of the secondary stage of education in the curriculum prescribed by Government and include all class of middle schools specified below unless the class of middle school is specifically mentioned :

(1)

"Middle English schools" mean those Middle schools where English is taught as one of the compulsory subjects unless the context excludes the classes of such schools mentioned in sub-rule (3) and (4) of this rule.

(2)

"Middle vernacular schools" mean those middle schools where English is not taught as one of the compulsory subjects unless the context excludes the clauses of such schools mentioned in sub-rules (4) and (5) of this rule. These Middle vernacular schools are also called Assamese Middle Schools, Bengali Middle Schools, etc., according as the vernacular of such schools is Assamese or Bengali.

(3)

"Middle English Madrassas" mean only those Middle English Schools which provide for a course of study in Islamic subjects in their curriculum.

(4)

"Sanskrit Middle Schools" are those middle schools which provide for a course of study in Sanskrit as one of the compulsory subjects. A Sanskrit Middle school may either be a Middle English School or Middle Vernacular School according as whether it has English in its compulsory course or not.

(5)

"Middle Madrassas" means those Middle Vernacular Schools which provide for a course of study in Islamic subjects in their curriculum.

Note : The term "middle vernacular school" is used only to distinguish the middle schools with English from those without English. As soon as English is abolished from the curriculum for middle schools all such school will be called middle schools. To distinguish the middle schools with different vernacular as well as those with provision for teaching of Sanskrit or Islamic subject the terms Assamese Middle School, Bengali Middle School, Khasi middle School, Sanskrit Middle School, and Middle Madrassas will then be used.

18.

"Head of an Institution" means the officer-in-charge of the Institution such as Principal of a college, Headmaster, Headmistress or Head Pandit of a school.

19.

(i) The head of a school i.e., the teacher-in-charge of a school is differently designated in schools of different classes or grades and some times in schools of the same class and grade as shown below :

Primary and Middle Vernacular School except Middle Madrassa

Head Pandit

Middle English School other than Middle English Madrassa ;

High School other than High Madrassa

Headmaster

Middle Madrassa, Middle English Madrassa, High Madrassa and

Training School

Superintendent

Again, in case of female officers the terms are used in the opposite gender.

The term Headmaster used in the subsequent rules will however mean and include the head teacher-in-charge of any school viz., primary, middle and high school.

(ii)

The term Assistant Headmaster means the teacher of this grade and includes Assistant Superintendents and Assistant Headmistresses.

20.

"High Schools" means the schools teaching up to the end of the secondary stage of education unless the context

excludes the class of High Schools viz., the High Madrassas defined in Rule 21 below.

21.

"High Madrassas" is a special class of high school which provides for instruction in Arabic, Fiqah and Aquaid in addition to the compulsory subjects taught in an ordinary high school.

22.

"Primary section" and "middle section" means the primary school classes and the middle school classes attached to a school of higher standard than a primary school or a middle school respectively.

23.

"Training school" means school for training of teachers for primary and secondary schools in the curriculum prescribed by the Department.

Training schools are of two kinds :

(a)

"Normal schools" for training of teachers for secondary schools and

(b)

"Guru training schools" for training of teachers for primary schools.

24.

A "professional school" means a school where instruction is imparted only to enable its pupils to take up any particular profession or professions for their livelihood. The schools where the art of type-writing, Shorthand and Soap making, etc., are taught are called professional schools.

25.

"Other special schools" include Sanskrit school, music schools, and school of Fine Arts.

26.

A first grade Arts college teaches up to the standard of a University Degree, and a second grade Art College to the standard of the Intermediate Examination.

27.

A "Training College" is an institution for the professional training of inspecting officers and teachers of secondary schools in the curriculum prescribed by the University.

28.

A "professional college" means a college where instruction is imparted to enable its students to take up any particular profession or professions for their livelihood in a standard higher than that of a professional school.

29.

"Special colleges" include music college and colleges of Fine Arts.

30.

"Oriental colleges" are institutions for the higher study of Oriental languages and literature, i.e., Sanskrit Colleges, Senior Madrassas and Title Madrassas.

31.

A "school session" or a "college session" means a fixed period commencing and ending on dates prescribed by a competent authority from time to time for the purpose of covering a particular course of study in an institution and generally it covers a period of one year unless otherwise provided. The competent authority under this rule shall be the Director in case of school session and the University in case of college session. A school session in primary, middle and high schools extends over a period of one year commencing on the first day of February in one year and ending the last day of January in the next year and is divided into three terms, viz.,

(i)

the first term from the commencement of the school session till the end of the Summer vacation ;

(ii)

the second term from the re-opening day of the Summer vacation till the end of the Puja vacation ; and

(iii)

the third term from the re-opening day of the Puja vacation till the end of the school session.

A college session commences on the first June in one year and ends on the 31st May in the next year.

32.

"Public Examinations" means such examinations held for the purpose of granting certificates, diplomas and scholarships

as are recognised by the Government to be public examination.

33.

The term permanent residents of Assam includes the natives of Assam and those domiciled therein. A person shall be deemed to have acquired a domicile in Assam if he fulfills the requirements of Rs. 307(2) of the Assam Executive manual which is reproduced below and if he or his parents can produce certificate to this effect from the District Officers as required by the aforesaid rule.

Rule 307(2) of the Assam Executive Manual-

"It has been laid down as a working principle that in the absence of any special rule governing a particular case or class of cases a man who is not a native of the Province shall be deemed to be domiciled in the Province only when he has become the owner of a homestead (house and land) in the Province, has already lived in that homestead for ten years and intends to live in that homestead until he dies. The children of such a man will automatically be domiciled in Assam unless and until they clearly show their intention of reverting to the country from which the family came.

Where the above conditions are fulfilled, the Deputy Commissioner is authorised to give a certificate of domicile. If in any case, there is any doubt whether any applicant for appointment belongs to a family native of, or domiciled in Assam, a reference should be made to Government."

34.

A "recognised institution" means an educational institution of any class or grade recognised by or affiliated as such to-

(i)

the Government of India ; or

(ii)

the Government of Assam or any other Indian State ; or

(iii)

an Indian University ; or

(iv)

the State Board ; or

(v)

a School Board ; or

(vi)

the State Madrassa Board ; or

(vii)

the Assam Sanskrit Board ; or

(viii)

by any other authority constituted by law for the purpose of imparting or/and managing education of any standard whether exclusively or as a part of its other functions ; Provided that the local and Municipal Boards shall not have the power to recognise any institution.

35.

The abbreviation G.O. means Government Order.

2. Extent of application.

- 1. These Rules shall apply to all institutions in Assam except Anglo-Indian and European institutions unless otherwise provided for and in so far as they are not inconsistent with the Assam Basic Education Act, the Gauhati University Act, and rules framed under these Acts.

2. The rules relating to primary education in the autonomous areas may be applied where practicable without prejudice to the rules framed in this regard by Regional or District Councils for these areas.

3. Words denoting masculine gender in these rules shall mean and include the corresponding words of the feminine gender unless the context otherwise provides.

The duties and powers of the Inspector of Schools as defined in these rules shall automatically be the duties and powers of the Inspectors of School in respect of girls schools, girls scholarships, etc., unless the context otherwise provides.

Chapter II

General Administration of Schools

3. Recognition of Schools.

- 1. the following are the authorities to recognise schools of certain grades :

(i)

Primary schools and primary sections. - Recognition of primary schools under the management and control of the School Boards is provided for in the Assam basic education Act, and the rules made thereunder.

In other cases-the Deputy Inspector of Schools except in the case where there is no Deputy Inspector of Schools the Assistant Inspector of Schools concerned shall exercise this function until Deputy Inspectors of Schools are appointed in these areas when these Deputy Inspector of Schools shall exercise this function.

(ii)

Middle schools including the Boards, and Board's aided schools. - The Inspector of Schools, except in cases of-

(a)

the middle schools in the district of Cachar where the Assistant Inspector of Schools for that district may exercise this power ;

(b)

the middle schools situated in the autonomous areas where the Assistant Inspector of Schools for Hills may exercise this power ;

(c)

the middle schools for girls here the Inspectors of Schools shall exercise this power.

(iii)

High Schools except High Madrassas teaching up to Class VIII. - The Director of Public Instruction.

(iv)

High Madrassas. - The State madrassa Board.

2. For recognition of high schools teaching up to the matriculation standard the Director shall act in consultation with the University.

3. The alteration of the standard of a school requires the sanction of the Inspector of Schools.

4. The privilege of recognition may be withdrawn or withheld for any period from any institution by the authority competent to recognise that institution if it-

(a)

has wilfully transgressed or evaded the rules in this Chapter regarding admission, withdrawals and transfer of pupils ; or

(b)

does not give reasonably good instruction ; or

(c)

does not maintain good discipline ; or

(d)

fails to abide by-

(i)

the rules and regulations prescribed by the Department in case of schools to whom these Rules and regulations are applicable ;

and in other cases

(ii)

the rules and regulations prescribed by the respective competent authorities concerned.

5. An appeal against an order refusing, withdrawing or withholding recognition will lie-

(i)

in the case of primary schools or primary sections-to the Inspector of Schools ; and

(ii)

in all other cases-to the Director.

6. A school desirous of being recognised shall submit an application praying for recognition showing-

(a)

that the school is a real need of the locality, that the school is not likely to suffer by migration of pupils to a neighbouring school nor it is likely to harm a neighbouring school already recognised :

Note : For this purpose a map of the area within a radius of 5 miles from the school showing all the schools in that area and the population figure of that area should be furnished :

(b)

that the school is under the management of a regularly constituted committee on which the teaching staff is represented, that proper provision is made for the continuance of the existence of such committee and that the rules are such that the committee can exercise necessary amount of control over the working of the school ;

(c)

that the qualification, character and experience of the Headmaster and the rest of the teaching staff are satisfactory, that due provision is made in respect of the number of teachers, and otherwise for carrying on all the courses of instruction including the optional subjects prescribed for the standard in which the school desires to be recognised and that the conditions Government the tenure of the office of the Headmaster and the staff are such as to render proper continuity of work possible ;

(d)

that the building in which the school is carried on are adopted for the purpose of a school and are in proper sanitary condition, that the surroundings are suitable and that the arrangements made in the buildings and in the furnishing of them are not likely to injury in any way the eyesight and general health of the pupils ;

(e)

that the accommodation is sufficient for the classes under instruction in the school ;

(f)

that the sanitary conditions attached to the school are adequate and are kept in good order ;

(g)

that arrangements are made for the supply of good drinking water to the pupils and facilities are provided to allow them to partake of refreshments;

(h)

that due provision is made for the maintenance of a good library and for lending out appropriate books (not school text books) for the use of pupils ;

(i)

that when the prescribed courses of study which the school is to follow involves any branch of work such as experimental science which-

(a)

involves teaching to be experimentally illustrated ; or

(b)

involves the pupils themselves doing practical experimental work ;

the apparatus and facilities provided for the purpose are sufficient to carry out these objects properly and fully;

(j)

that when any subject requires for its proper understanding to be illustrated by special appliances, i.e., the subject of geography by maps and models, and the science subjects by a collection of objects or collections in the form of a museum, such provision has been made;

(k)

that the school authorities have made provision to ensure discipline and good conduct, among the pupils both within and outside the school premises, and that there are suitable arrangements for their recreation;

(l)

that when pupils are not resident with either parents or guardian the school authorities will insist on such students living either in a hostel or a mes which is duly inspected and placed under the control of some person responsible to the Headmaster of the school for the discipline and well-being of such pupils ;

(m)

that no teacher is allowed to teach-

(i)

in classes IX or X or any section thereof, more than 50 pupils at the same time ;

(ii)

in any of the classes from classes V to VIII or any section thereof more than 40 pupils at the same time ;

(iii)

in classes III or IV or any section thereof more than 30 pupils at the same time;

(n)

that the school authority has made adequate arrangements for giving a course of physical training to all pupils unless exempted by a competent authority for special reasons.

Competent authority for the purpose of this rule is-

(a)

the University in case of high schools teaching up to the matriculation standard ;

(b)

the State Madrassa Board in case of high madrassas ; and

(c)

the Director in all other cases ;

(o)

that the financial stability of the school is assured ;

(p)

that there is no reasonable fear of fall in enrollment below 25 pupils in each of the classes III to VI and 20 pupils in each of the classes VII and VIII;

to the Inspector of Schools through the Deputy Inspector and Assistant Inspector of Schools concerned in case of middle schools and to the Director through the Inspector of Schools and the Inspector of Schools concerned in case of high schools teaching up to class VIII.

7. On receipt of all the information required under Rule 6 above and recommendation of the Inspecting Officers concerned through whom the applications for recognition are submitted the authority competent to recognise a particular school shall decide whether the school should be recognised or not. Ordinarily no school which cannot satisfy the conditions laid down in the foregoing rule perfectly shall be recognised. The officer competent to recognise a school may, however, condone certain deficiencies if such condonation does not go against the interest of education and in such a case a school may be recognised provisionally.

Provisional recognition will be given ordinarily for a period of 3 years on the condition that this provisional recognition may not be renewed after this period of 3 years if the school cannot make up the deficiencies by that time.

The letter of recognition shall state the courses of instruction in which the school is recognised. If a recognised school desires to add to the courses of instruction in respect of which it is recognised the procedure laid down in the foregoing rules shall be followed mutatis mutandis.

Part I

Rules for Primary and Middle Vernacular Schools

4. Admission and withdrawal of pupils in schools.

- 1. (a) When a boy is admitted for the first time to a primary or a middle vernacular school, the father or guardian shall accompany him, and declare in writing that the boy has never before attended any school, and shall, if he has no horoscope, declare also in writing the age of the boy in years, months and days, calculated according to the English method.

(b)

When a pupil is admitted to a primary or a middle vernacular school on transfer, he is required to produce a certificate in Form I from the head teacher of the school in which he was last reading. As a rule, a parent or guardian shall accompany the pupil. Failing this, the pupil shall produce a letter of application for admission from parent or guardian.

(c)

No admission to Class A should be allowed more than 3 months after the beginning of the school year.

2. Applications for leaving certificates must be made by the parent or guardian of the pupil either personally or by letter.

3. The teacher responsible must give or refuse the certificate within 7 days from the date on which the application is received. Whenever a leaving certificate is refused, a statement of the grounds for refusal shall be given to the applicant in writing.

4. On admission to a school a pupil shall not be placed in a class higher than that in which he was in the school he has quited. If, however, he has passed the annual examination for promotion, he may then be admitted into the next higher class.

5. Wilful transgression by a school of any of these rules shall render it liable, in extreme cases, to forfeit any grant it may be receiving and also the right to send up candidates to scholarship examinations for one or more years.

6. All questions arising under these Rules in their application to primary schools shall be referred to the Sub-Inspector of

Schools of the Circle, from whose decision an appeal may be made to the Deputy Inspector of Schools, questions arising in middle schools will be referred direct to the Deputy Inspector, whose decision shall be final.

Note. - See also Rule 36 of this section.

Part II

Rules for middle English and High Schools

7. When a boy is admitted for the first time to any school the father or guardian shall, where possible, accompany him and declare in writing that the boy has never before attended any school, and shall, if he has no horoscope, declare also in writing the age of the boy in years, months and days, calculated according to the English year and month. Where it is not possible for parent or guardian to accompany the boy, a person authorised in that behalf in writing shall do so.

In case of a pupil coming from a school in another State, the transfer certificate must be sent to the Inspector of Schools concerned of that State for countersignature and information whether the school is recognised.

Certificates from unrecognised schools shall not be accepted.

8. When a pupil is admitted to any school from another school, he shall produce an application from his father or bona fide, guardian in Form 2. He is also required to produce a leaving certificate in Form 3 from the school which he last attended.

9. Applications for a leaving or transfer certificate shall be made by the parent or guardian of a pupil and shall be accompanied by a fee of two annas.

10. The name of a pupil may be removed from the rolls on application from the guardian with effect from the date of receipt of the application.

11. If the guardian wants merely to withdraw a pupil from a school a simple notice to the Headmaster to the effect will be sufficient. In such cases the fee provided in Rule 9 must not be charged.

12. Within seven days of the receipt of an application, the Headmaster shall grant a leaving certificate, except only in case of a pupil (i) who has been expelled from the school for misconduct, (ii) whose school fees or other dues have not been fully paid up to the end of the term, (iii) whose proposed withdrawal from the school is due to disciplinary action taken by the Headmaster. In the last case the Headmaster shall at once report the matter to the Inspector of Schools ; and the guardian may appeal to the Inspector.

In any of these cases, the Headmaster shall refuse to grant a certificate and shall state the reason for his refusal in writing to the applicant. In the second case, if all sums due to the school are subsequently paid, a certificate must be granted on payment.

13. If the Headmaster fails, except for reasons specified in the preceding rules, to grant a leaving certificate within 7 days of the date of application or within 3 days of the payment of all dues, should such payment be made subsequently (vide Rule 12) the parent or guardian may refer the matter to the Inspector of Schools, who shall institute inquiries. If the Inspector finds the Headmaster in fault he shall instruct the Headmaster to issue a leaving certificate, and, should the case appear to warrant such action, he will report the matter to the Director of Public Instruction, submitting at the same time the explanation of the Headmaster, together with his own recommendations for action with reference to the Headmaster or his school by withdrawal of grant, scholarship rights, or departmental recognition. Pending the result of enquiry, should be pupil seek admission into another school, the Inspector may, if there is a prima facie case authorise his temporary admission.

14. (a) Fees are payable for the term either in a lump sum or in instalments, and a pupil withdrawing from a school at any period during the term is liable to pay fees for the whole term and in accordance with provisions of Rule 12 a leaving certificate shall not be issued to him until these fees are paid. The date up to which payment has been made shall be clearly stated in the certificate.

N.B. There are three terms in the school year :

(i)

From the beginning of the school year till the end of the summer vacation.

(ii)

From the end of the summer vacation till the end of the Durga Puja vacation.

(iii)

From the end of the Durga Puja vacation till the end of the school year.

(b)

For the purpose of reckoning the fee payable termly, the first term shall be considered as closing on 30th June, the

second as closing on 31st October and the third as closing at the end of the school year.

(c)

Instalments are due on the first of each month and must be paid not later than the 15th of each month. If in any month a vacation extends to the 15th day of that month, the fees for that month must be paid at the same time as the fees for the previous months or on any subsequent date prescribed by the Headmaster. If the 15th of any month is a holiday or falls within a series of holidays, fees may, at the discretion of the Head-master, be collected on the re-opening day. No fees shall be accepted during a vacation or on any day except school working days. On school working days, fees will be accepted up to such hours as may be prescribed by the Headmaster.

(d)

A fine of one anna shall be levied for each day that an instalment is outstanding after the prescribed date up to the end of the month.

(e)

When the application of the foraging rules would involve parents and guardian in the payment of three months fee in a single instalment they may withhold payment of the third month's fee until the first date assigned for the receipt of fee after the vacation.

(f)

Matriculation candidates should pay tuition fees up to and including the month in which the examination is held.

15. (i) Leaving certificates from unrecognised schools cannot be accepted.

(ii)

Pupils from unrecognised schools may, however, be admitted to recognised schools under orders of the Inspector of Schools, who shall have power in the case of any particular unrecognised schools of the status not higher than Middle English, to delegate his authority by specific order to the Assistant Inspector of Schools or the Deputy Inspector of Schools :

(a)

After examination by the Headmaster to determine the class they are fit for.

(b)

On payment of an examination fee not in excess of Rs. 5 in addition to the usual admission fee, the amount to be fixed by the Inspector of Schools when authorising the admission or delegating the authority as above. The examination fee will not, however, be charged in the case of pupil entering the lowest class of a Middle English or High School, viz., Class IV.

(iii)

In the case of any unrecognised school which has not been refused recognition it shall be in the power of the Inspector of Schools to issue a temporary and provisional recognition pending the fulfilment of such conditions as he considers necessary to the entry of the school on the recognised list; schools so recognised shall during the period of their provisional recognition be treated as recognised schools.

16. In addition to a leaving certificate, a pupil (save in the case of boys coming from Primary Schools and Middle Schools without English, or from no school at all, should bring to the school to which he is admitted, a School Record in the form approved by the Director of Public Instruction. This School Record will show the career of the pupil and will be made up at the close of each term in the way prescribed on the cover and sent to the parent or guardian who will return it at the commencement of the next term. Each school will keep a copy on an identical form of the portion of each pupil's School Record which relates to his career in that school.

17. The period of the year at which a pupil may be admitted from another school and the amount of the fees which he shall be required to pay on admission shall be regulated by his "reasons for leaving" the previous school as stated in his leaving certificate. The "reasons for leaving" should be entered in accordance with the following classification :

(i)

"Unavoidable change of residence."

(ii)

"Ill-health."

These reasons should be given only if it is, in the opinion of the Headmaster well founded.

(iii)

"Completion of the school course."

(iv)

"Minor reasons." The reason should be specified at length.

18. Admission to a new school in the middle of the term is permitted only in case of (*) "Unavoidable change of residence" and that only if it can be effected without detriment to school work. In such case, the school to which admission is given is empowered to charge the pupil a fee reckoned proportionately to the terminal fees for the period between the date of admission and the end of the term. In Government and Government-Aided Schools such pupils will be exempted from payment of any dues up to the end of the current term, and the application of this privilege is recommended in other schools also. In no such case may admission fee be charged.

19. Admission to a new school in the middle of the school year is permitted only in cases of (i) "Unavoidable change of residence" and (ii) "Ill-health". In the latter case, the pupil may be admitted within 15 days from the beginning of any term, fees being payable for the whole term. If more than 6 months have elapsed between the date of the leaving certificate and that of admission to the new school, an admission fee (see Rule 21) will be charged.

20. In cases (iii) "Completion of the school course" and (iv) "Minor reasons" a pupil may be admitted to a new school only at the beginning of the school year (within one month from the opening date) fees being payable for the whole term in addition to an admission fee (see Rule 21).

Note. - (1) When a pupil's transfer is necessitated by the abolition of the school in which he has been studying, he may under special arrangements to be made by the Inspector, be admitted to another school in the middle of the school year.

(2)

Transfer certificate for which application has been made in the last month of the school year and on or before the last date of that year must be issued free of charge.

The annual examinations for class promotion must, therefore, be held in time to permit of promotions being announced before the working day of the year and the promotions must be so announced.

21. The following rules regulate the re-admission of boys to the same school after a period of absence, whether on account of rustication or for other reasons :

(a)

Boys who have been rusticated should not at the close of their period of rustication be debarred from continuing their studies and should ordinarily be admitted to the school from which they were rusticated. It is, however, open to Headmasters to take guarantee for good conduct.

(b)

If a boy leaves a school during one term, owing any fees, or fines and applies for re-admission in a subsequent term of the same session, he will be re-admitted without any admission fee on payment of outstanding fees and fines due up to the end of the term in which he left the school and fees for the month in which he is re-admitted.

(c)

If a boy leaves a school during one session and applies for re-admission in another session he will be treated as though coming from another school and must pay an admission fee in addition to the fees and fines payable under the pending clause :

Provided that in case of a boy whose period of rustication, ends in the following session and who seeks admission at the end of the period, admission fee will not be charged.

22. The prescribed admission fee for all schools is a sum equivalent to the monthly fee charged in the class of admission.

23. All applicants for admission to the lowest class viz., Class III or IV, as the case may be, other than scholarship-holders will be subjected to a regular test in the curriculum prescribed for Class II or Class III, as the case may be. The Headmaster will be responsible that the examination is a conscientious test of the applicant's fitness to enter the lowest class of the school and to cover before the end of the year the full course of studies prescribed for that class. He will set the standard of the tests himself, but may in the case of large schools leave the actual work of examining the applicants to the Assistant Headmaster.

24. Subject to the foregoing a pupil on admission, unless he comes from a school following a different course and curriculum, will ordinarily be placed in the same class as that in which he was reading in his former school except in the following cases :

(i)

When his leaving certificate states that he has passed the examination for promotion, he shall be placed in the next

higher class, but if the Headmaster on the result either of an admission test or of the pupils class work within two months of his admission, finds him unfit for that class, the pupil will be placed in the class in which he was reading in his former school if he is found fit for that class after an admission test. But a pupil who has been absent from any school for more than 6 months should be subjected to admission test, admission being given to the class for which he is found fit.

(ii)

If he was granted a leaving or transfer certificate, on the ground of unavoidable change of residence, in the middle of the school year immediately preceding and was unable for want of accommodation to obtain admission to his proper class in any recognised school in the neighbourhood of his near residence, the Headmaster, on being satisfied that the boy has been regularly instructed in the interval, may allow him to appear without fee in the promotion examination of his proper class and, if he is successful, may admit him to the next higher class in the following school year.

(iii)

If he has been absent from any school for not less than one year and his parent or guardian can produce reasonable proof that he has received private tuition, the Headmaster can place the pupil in a higher class, but not higher than the one which the boy would have reached in the ordinary course had he not been absent from school as aforesaid subject to the sanction of the Inspector of Schools, the name of such a body being indicated in the admission register by a red asterisk, and the date on which and the class into which he is admitted will be written in red in the same register.

(iv)

If, the school in which the applicant was reading although recognized, has yet on account of the inferiority of its instruction been excluded temporarily from the benefit, of this rule, the applicant will be placed on the class which he is on examination found fit for.

(v)

If he has studied in no school previously but received his education at home, his case will be governed by the following : Admission may be made at the beginning of the first or second term but not at the beginning of the third term (after the Durga Puja vacation) and it is within the power of the Headmaster to refuse admission to a candidate otherwise qualified save at the beginning of the school year. The Headmaster should make careful enquiries as to his antecedents and admit him to the class for which he is found fit after an admission test, subject, when the admission is to Class V or any higher class of a High and Middle English School, to the Inspector's sanction. Inspecting officers, should give special attention to such pupils at the time of inspection ; and their names should be indicated in the admission register as in case (iii) above.

25. On transfer from schools without provision for teaching of English pupils shall be admitted as follows subject to the provision that if the guardian so prefers a boy may be admitted to a lower class than that prescribed below without any prejudice whatever and without prejudice to the provision made in Rule 23 :

(1)

If they have passed Class II or Class III to Class III.

(2)

If they have passed Class IV or Class V to Class IV.

(3)

If they have passed Class VI to Class V :

Provided that-

(i)

Arrangements shall be made in case of (3) to afford such pupils special facilities for the study of English so that they may have the opportunity of covering the full ground to the beginning of the high school course stage in 2 years in place of 3 years is contemplated in the syllabus.

Note. - Pupils who have completed the primary course and can pass a test in English of the standard of Class III will be admitted to Class IV.

(ii)

Pupils who are found on examination to have already acquired a sufficient knowledge of English to take their place in the appropriate English class may be admitted in accordance with Rule 24, as if they came from a Middle English or High School.

(iii)

If the guardian of the boy wishes, he may admit his ward in any class lower than that prescribed above. Such admission

into a lower class shall not render a scholarship holder liable to any loss of scholarship.

26. In case of pupils for whom the Middle School Examination is compulsory no admission to High School classes will be allowed without a Middle School Examination pass certificate in the groups concerned, except under order of the Inspector of Schools in special cases.

[See also rules regarding the Assam Middle School Examination].

27. The foregoing Rule 24, 25 and 26 apply only to pupils coming with transfer certificates from schools in this State which are recognised by the Department but do not provide for pupils coming with transfer certificates from outside the State. In the latter case the boys shall be examined before admission and shall be placed in such class as the results of their examination show them to be fit for.

No pupil from a school outside the State, who are over 19 years of age will be admitted to any recognised school in Assam.

28. Candidates for Government scholarships must not have migrated from one institution to another within two school years preceding the examination except with special permission of the Deputy Inspector of Schools in case of primary and middle schools and the Inspector of Schools, in case of high schools.

It is the duty of the heads of institutions to bring this rule to the notice of parents and guardians.

29. The transfer of Government scholarships and fee remissions shall be subject to the previous sanction of the Inspector which will be withheld unless satisfactory reasons are assigned for the transfer.

30. Where scholarships and fee remission are granted by the school, the parent or guardian should obtain a written declaration that his ward is admitted with such privileges.

When a pupil of either of the highest two classes of a school has held a scholarship or fee remission under express stipulation in writing, signed by himself and his father or guardian, that the whole or any portion of the sum drawn by or remitted to him shall be refunded to the school in case of withdrawal from it within a certain period, the leaving certificate may be withheld until the sums so due have been repaid ; provided that the amount so claimed shall not exceed the amount actually drawn and/or remitted.

N.B. - Special rules which are in contravention of this rule will not be recognised by the Department unless they are agreed to in writing by both pupils and their guardians.

31. If a pupil who has failed in the previous Matriculation Examination apply for admission in the following session without having joined any other school since the examination, the receipt of the University (Registrar's receipt) shall be accepted in lieu of leaving certificate.

Such pupils can be admitted within a week from the re-opening of the school after the Summer vacation. They will pay fees from the beginning of the month in which they are admitted. No admission fee will be charged when they are re-admitted to the school free, which they appears at the examination.

If they take admission to a new school an admission fee will be charged.

32. The application of a pupil for admission to the Matriculation Examination shall not be forwarded to the University authority concerned until he has paid all sums due to the institution in which he has been reading including fees up to the end of the month in which the first day of the Matriculation Examination falls.

This is exception to the general Rule 14 under which fees are payable to the end of the Summer vacation.

33. If a pupil be found producing a false document or making a false statement as to his attendance at any school or regarding any other information required in connection with his admission, he shall be record to the appropriate authority of the Department and he shall be liable to fine rustication or expulsion.

34. All questions arising with regard to the interpretation of these Rules shall be referred to the Inspector of Schools whose decision shall be final.

35. Wilfull transgression or attempted evasion of any of these Rules will under a school liable to forfeit the right of sending up candidates for scholarship examination and Public Examination and also to the loss of any grant-in-aid which it may be receiving from public funds. In the case of a high school it will be further liable to reported to the University for additional penalties.

36.

These Rules apply mutatis mutandis to optional English classes attached to middle vernacular schools.

Part III

Rules for recognised Madrassas

37.

The rules laid down in this section will apply in the case of recognised madrassas subject to the following qualifications :

(a)

In the case of a madrassa, where necessary, read madrassa, instead of "School" and "Superintendent" instead of "Headmaster".

(b)

In the case of business under these Rules relating to Senior and Title Madrassas read "Director of Public Instruction" in place of "Headmaster".

(c)

In case of madrassas where no fixed or approximate dates can be assigned for the three terms into which the school year has to be divided under Rule 14 the term shall be fixed annually by the managing committee of the institution.

(d)

Rule 16 may be omitted in the case of a madrassa until it is enforced by a general or special order of the Director of Public Instruction.

38.

A public admitted to a recognised madrassa on transfer from another recognised madrassa will ordinarily be placed in the class in which he was reading in the madrassa from which he has taken transfer ; provided always that pupils who have passed in Groups I and V of the Assam Middle School Examination shall, on transfer to a Senior Madrassa, be placed in the first year class of the Senior Department thereof.

39.

On transfer from recognised non-Islamic schools, with or without English, pupils shall ordinarily be admitted to the lowest class.

If, however, a pupil who has passed class III, or any higher class has studied privately special subjects of the madrassa course he may be admitted to that class for which he is on examination found fit.

40.

A pupil who seeks admission from a madrassa to a high school or a senior madrassa after completing the Middle Madrassa course and obtaining a Middle School Certificate in Groups I and IV shall be placed in Class VII of a high school or the first year class of a Senior Madrassa.

41.

A pupil seeking admission from a madrassa to a middle English or high school before completing the Middle English Madrassa course will ordinarily be placed in the same class as that in which he was reading in the madrassa subject mutatis mutandis to the condition specified in Rule 24, Part II.

42.

A pupil seeking admission to a high school from the Senior department of a madrassa or after passing the Senior Madrassa Final Examination shall be admitted to that class for which he is on examination found fit.

43.

Rule 25, Part II, shall apply in the case of transfer of pupils from Middle Madrassas to Middle English Schools or Madrassas, or to High Schools.

Part IV

Issue of duplicate transfer certificate

44.

Fees for issue of duplicate leaving or transfer certificates shall be as follows :

(1)

Schools without English including Madrassa-annas eight.

(2)

High School, Middle English School including Middle English Madrassa, Guru Training Schools, Normal Schools and Tols-rupee one.

5. Payment of fees and fines.

- 1. Fees payable by pupils include Schooling or tuition fees, games fees admission fees.

2. In addition to the foregoing special fees may be charged by the managing committee of aided or unaided High and Middle English Schools with the consent of the Inspector of Schools. The charge of such fees shall be made for not more than one year at a time.

3. School fees are payable at the following rates in public schools under the procedure laid down in the rules for admission and withdrawal of pupils :

Rs.

a.

p.

Classes III, IV and V

2

0

0

Classes VI, VII and VIII

3

0

0

Classes IX and X

4

0

0

No fees are charged for classes below Class III. Grant of fee remissions will be regulated by the rules in Section 6. Procedure for payment of fees is prescribed in Rule 14 of Section 4.

4. Games fees are levied at the annual rate of Rs. 1 per pupil for the four top classes and at 8 annas or, in the discretion of the managing committee Rs. 1 for the lower classes in Government High Schools. They are payable at the beginning of the year or on admission if admission is later.

In Government Middle English and Middle Vernacular Schools it will be open to the Deputy Inspector in consultation with the school committee to levy a games fees not in excess of 8 annas per pupil for all classes.

In Board and aided schools, it is discretionary to charge games fees either at the rate prescribed for Government Schools, or at a rate to be prescribed by the school authority.

5. Pupils who are certified by the School medical authority as unfit to take part in any school game are exempted from payment of game fees.

6. Pupils who live at such a distance from the school as to make it impracticable for them to join the school games may claim exemption from payment of the games fee unless there is a sufficient number resident in one locality to enable them to form a club, in which case games fee will be levied and the needs of the local club will be provided for, from the school games fund.

Transfer in course of the year will not involve the pupil transferred in the payment of a second games fee except in so far as the fee paid in the first school is less than that charged in the second school.

7. Admission fee are payable when a pupil first enters a school at rates prescribed in Rule 22 of Section 4.

Note. - See also rules in Section 4 regarding payment of admission fee.

Part I

Rules for Public Schools

6. Remission of fees in High and Middle Schools.

- 1. Fee remissions are made under certain conditions in favour of pupils who would ordinarily have to pay the regular schooling fee.

2. Except where otherwise provided, fee-remissions are sanctioned in Government High Schools by the school committee, and in Government Middle English Schools by the Inspector of Schools.

Save in backward localities they should not ordinarily exceed 13 per cent of the number of pupils on the rolls of the school.

3. Scholars who are exempt from payment of fees under the terms of their scholarships and other pupils enjoying special concessions under rules which follow, are not counted for the purpose of the 13 per cent limit.

4. Applications for fee remissions in Government Schools should be made to the Headmaster.

5. Deserving pupils, of the Scheduled Castes may be allowed fee remission up to a limit of 20 per cent of their enrollment, and such pupils belonging to the Scheduled Tribes may be allowed fee remission up to a limit of 50 per cent of their enrollment.

6. The children of Military and Civil Police below the rank of Jamadar or Sub-Inspector are allowed free education up to and including Class VI in Government Schools.

Applications for concession under this rule must be countersigned by the Commandant or District Superintendent of Police.

7. In places where there is no school offering free instruction beyond the primary stage, the children of Mandals and Patwaris are allowed to read at half the ordinary rates in classes III to VI of Government Middle English Schools under public management and at two thirds the ordinary rates in the same classes of Government High Schools. The applications for this concession should be countersigned by the Deputy Commissioner of the district in which they serve.

8. The children of teachers serving in Middle and Lower Primary Schools under the control of Local Bodies or School Boards in Assam are allowed free education in classes III to IV of all Government High and Middle English Schools.

Applications for this concession should be countersigned by the Deputy Inspector of Schools under whom the teachers serve.

9. (a) Teachers in Middle English and High Schools under public management drawing salaries not above Rs. per mensem are allowed to educate in the school in which they are employed one son free and other sons at half the usual rate of schooling fee.

(b)

Teachers so paid serving in Girls Schools of these classes will be allowed the above concession for their sons in the nearest boys schools of the same standard under public management.

(c)

The Director of Public Instruction is authorised to extend the above concession to the sons of approved teachers drawing salaries not exceeding Rs. 100 per mensem.

10. (a) The concession of fee-free education for one ; and half fee-free education for other sons shall be allowed in the case of educational servants of Government or public bodies-

(i)

who have been superannuated for invalid on, or have died in receipt of pension not exceeding Rs. 25 a month ;

(ii)

who have died in service in receipt of pay not exceeding Rs. 50 a month.

The concession will be granted in the Middle English or High Schools under public management which is nearest to the officers residence or, in the case of orphans, nearest to the residence of their guardian. In the case of vernacular school teachers the concession is confined to classes III to IV of Middle English and High Schools.

(b)

The Director of Public Instruction is authorised to extend the pension and salary limits to Rs. 50 and Rs. 100 respectively in the case of Government officers who have served with special merit.

11. In the case of two or more brothers attending a Government High or Middle English School the eldest brother may be charged the full fee and the rest at half the prescribed rates.

Note. - The intention of this rule being to give some monetary relief to the parents having more than, one child reading in the same school, the words brothers and brother in this rule should be taken to include and mean sisters and sister also.

12. Every fee remission is liable to be cancelled-

(a)

in the event of unsatisfactory progress or conduct; or

(b)

for other reasons that may appear to be sufficient ground for such cancellation in the opinion of the authority which granted the remission; and

(c)

if the name of a free or half free pupil be struck off for non-payment of other dues which include the half schooling fee in case of half free pupils, he will lose the privilege of free or half free studentships with effect from the date on which his name is struck off.

Note. - See also Form 4.

13. Where the number of applicants for entry to a school exceeds the number of vacant places, the concessions granted by the rules in this section shall not be read as giving the children concerned a preferential claim to admission.

Part II

Rules for Private Schools

14. It shall be in the discretion of the managing committees of privately-managed schools to grant any or all of the concessions allowed by the forgoing rules. In such of these schools as are aided from public funds no other or larger concessions may be made without the sanction of the Director of Public Instruction.

7.

[Not printed]

8.

[Not printed]

9.

[Not printed]

Chapter III

Managing Committees of Schools

10. Managing Committee of Government High and Middle Schools.

- 1. Every Government high or middle school shall be governed by a managing committee saved in cases where the Director allows an exception under special circumstances.

2. The managing committee of a Government high school shall, save in cases, where the Director sanctions a special committee in special circumstances consist of the following persons :

(1)

President- The District or the sub-divisional Officer according as the school is located at the head-quarters of a District or of a Sub-division.

Ex officio.

(2)

Vice-President- An Assistant Inspector of Inspectors of Schools to be appointed by the Inspector or Inspectress of Schools as the case may be

Ex officio.

(3)

Secretary- The Headmaster

Ex-officio.

(4)

Ordinary members-

(i)

A civil officer appointed by the Inspector or the Inspectress of Schools on the recommendation of the District Officer

Ex-officio.

(ii)

The Deputy Inspector of Schools

Ex-officio.

(iii)

The Assistant Headmaster

Ex-officio.

(iv)

Two or if there is a local demand for further representation, three non-official members appointed by the Inspector or the Inspectors of Schools, as the case may be, with the approval of the Director save in cases where such approval may be presumed to have been obtained under any general or special orders of the Director. In case of girls schools attempts should be made to appoint ladies as far as possible.

(v)

An Assistant Master elected by the teaching staff (excluding the Headmaster and the Assistant Headmaster) of the school from among themselves, annually in the beginning of the school session, the election being subject to confirmation by the President of the committee.

3. The managing committee of a Government middle school save in cases where the Director sanction a special committee in special circumstances shall consist of the following persons :

(1)

President- The Deputy Inspector of Schools, in case of girls school, an Assistant Inspectress of Schools may be appointed by the Inspectress of Schools where possible.

Ex-officio.

(2)

Vice-President- A Civil officer of the second grade preferably a sub-deputy collector posted in the locality where the school is situated to be appointed by the Inspector or the Inspectress of Schools as the case may be, on the recommendation of the District officer

Ex-officio.

Note.-If no such officer is available a non-official of high social position may be appointed as Vice-President or President. In the latter case the official President may be made the Vice-President

(3)

Secretary- The Headmaster.

Ex-officio.

(4)

Not less than three and not more than seven ordinary members, representatives as far as possible, of the various sections of the people of the locality, to be appointed by the Inspector or the Inspectress of Schools, as the case may be. In case of girls schools attempts should be made to appoint ladies as far as possible.

4. The Inspector or the Inspectress of Schools, as the case may be, may dissolve and re-constitute any managing committee at any time if circumstances so demand subject to the approval of the Director save in cases where such approval may be presumed to have been obtained under any general or special orders of the Director.

5. Subject to Rule 2 (4)(v) and Rule 4 above the term of office of a member other than an ex-officio member will ordinarily expire after three years from the date of the first sitting of the managing committee to which he was appointed with the required quorum but he will be eligible for re-appointment. He shall, now however, continue to be a member till he is re-appointed or till another person is appointed in his place. The date on which the term of such a member expires shall be intimated by the Secretary of the committee to the Inspector or the Inspectress of Schools, as the case may be, in case of high school and to the Deputy Inspector of Schools in case of middle schools at least three months ahead.

6. Any vacancy in a managing committee may be filled up in the way in which it was originally filled up and non-filling up of any vacancy will not make its proceedings void provided there is the required quorum.

7. In absence of the President and Vice-President the Headmaster will preside.

8. All matters brought before the managing committee shall be decided by a majority of votes. Each member shall have one vote. The President shall have a casting vote in addition in case of equality of votes.

9. Subject to the rules in this Part each managing Committee shall frame its own rules of business and submit the same to the Inspector or the Inspectress of Schools, as the case may be, for confirmation.

10. The managing committee shall exercise general control over only the current business of the school except in matters where the powers to exercise such control are delegated to other authorities either in these Rules or by any

special order of the Director.

11. The managing committee shall further perform the duties assigned to them by special or general orders which have been issued and may thereafter be issued under the sanction of Government or the Director. In particular, they shall exercise the powers and perform the duties assigned to them under the following rules :

(1)

Rules for Government School hostels ;

(2)

School examination and promotion rules ;

(3)

Attendance rules;

(4)

The rules relating to discipline ; and

(5)

The rules relating to games fees and remission of fees.

Note. - Managing Committees will correspond with the University only through the Inspector of Schools and the Director.

12. Except where it is ordered otherwise by general or special orders of the Director, the managing committee will leave to the headmaster all routine questions in connection with management of classes, admission and transfer of pupils, settlement of the school routine, periodical examination, awarding of class promotion, selection of candidates for the Matriculation Examination in case of Government High Schools, and all matters of routine relating to instruction, administration and the discipline and control of the pupils and the staff. If in the opinion of the managing Committee it becomes necessary to make an enquiry into any of those matters the committee shall refer the matter to the Inspector or the Inspectress of Schools, as the case may be, in case of high schools and the Deputy Inspector of Schools in case of middle Schools who will either make the enquiry by himself or authorise the managing committee to depute not more than two members to make a joint enquiry and to submit a report to him. The Assistant Headmaster or any assistant master who may be members of the managing committee shall not be deputed in such cases.

13. The headmaster shall have the power of suspending a pupil of the school in case of grave misconduct. But the authority to rusticate or expel is reserved to the managing committee, to whom all cases should be at once reported for orders and who may issue instructions to the headmaster to conduct an enquiry.

Note. - See also rules in Chapter IV on Discipline.

A headmaster may suspend any member of the staff as a prelude to departmental enquiry with the previous permission of the Secretary or if the headmaster himself is the Secretary of the President.

14. An annual report on the schools shall be prepared by the Secretary to the Committee for their approval and shall be submitted to the Inspector of Schools in case of high schools and to the Deputy Inspector of Schools in case of middle schools.

In case of girls schools the reports in respect of high schools and middle schools shall be submitted to the Inspectress of Schools and the Assistant Inspectress of Schools respectively.

15. A visitors book shall be kept in the school in which members of the committee may record their remarks.

16. Managing committees will ordinarily meet not less than once a quarter.

11. Managing Committees of Government Aided High and Middle Schools.

- 1. Every Government aided high and middle school shall be governed by a representative managing committee the constitution of which has been approved by the Inspector or the Inspectress of Schools as the case may be, save in cases where the Director allows an exception under special circumstances.

2. Save in cases where the Director sanctions a special committee under special circumstances each managing committee shall consist of one President and one Secretary both of whom shall be nominated by Government and ten ordinary members except in case of middle schools where this number will be nine which shall include-

(i)

The Headmaster;

(ii)

(iii)

Two members except in case of middle schools where this number will be one, to be elected by the teaching staff (excluding the headmaster) of the school from among themselves ;

(iv)

(v)

Two members to be elected by the guardians ;

(vi)

(vii)

(viii)

One member to be elected by the donors of not less than Rs. 500 and subscribers of Rs. 5 or above annually ;

(ix)

(x)

For members to be nominated by Government ;

Provided that-

(a)

in the event of the headmaster being nominated as the Secretary an ordinary member may be nominated by the Government in place of the headmaster ;

(b)

when outsider and not the headmaster is nominated as the Secretary either, the headmaster or one of the teachers representatives may be appointed as the Assistant Secretary when necessary ; and

(c)

when special circumstances so justify not more than two additional members in excess of the number prescribed in this rule may be nominated by Government.

Note. - (1) The power of nomination, under this rule is delegated to the Inspector of Schools in case of boys schools and to the Inspectress of Schools in case of girls schools who shall make the nomination in consultation with the District or the Sub-divisional Officer where necessary and with the approval of the Director save in cases where such approval may be presumed to have been obtained under any general or special orders of the Director. The nominated members may be either officials or non-officials but endeavour shall be made to have a person of medical profession in the committee and to include ladies as far as possible in case of girls schools.

(2)

In cases of item (vi) of this rule the seat shall remain vacant if there is no elector possessing the qualifications prescribed. In the event of the number of such electors being only one he may nominate himself for the seat in question.

3. Appointment of Government officers to managing committees of aided schools will be ex-officio so far as practicable. For such appointments prior approval of the authority under whose administrative control the officer concerned works is to be obtained. Once the appointment of a certain Government Officer as a member of a particular managing committee is approved under this rule, this approval will be presumed to apply to all his successors in that office unless the authority according the approval desires otherwise.

For appointment of District and Sub-divisional Officers as President of managing committees approval of Government may be presumed to have been obtained.

4. The Inspector of Schools may dissolve and reconstitute a managing committee at any time, if circumstances so demand subject to the approval of their Director save in cases where such approval may be presumed to have been, obtained under any general or special orders of the Director.

5. Subject to Rule 4 above the term of a managing committee will ordinarily expire after a period of 3 years from the date of the first sitting of that committee with the required quorum or on its being reconstituted, but the members will be eligible for re-appointment or re-election as the case may be. Not later than 3 months before the expiry of the term, the Secretary of the committee shall intimate to the Inspector of Schools, the actual date on which the term of the existing committee expires and shall forward along with it the names of the newly elected members the election being held well ahead of time. If the names of the elected members are not received in time the managing committee shall be re-constituted by the Inspector of Schools with the nominated members and the headmaster, without any reference from or to the school authority. The quorum for such a committee shall be mentioned in the order of reconstitution. The names of the elected members may be subsequently included in the constituted committee when received.

6. Subject to Rules 4 and 5 above an ex-officio member of managing committee shall automatically cease to be a member as soon as he vacates the particular office during the tenure of and by virtue of which he was appointed as such, and his successor will be deemed to be appointed as ex-officio member of that managing committee in the

capacity of his predecessor. Such changes should be reported immediately by the Secretary of the committee.

7. An ex-officio member shall not resign his membership of a managing committee. He may, however, be relieved of his office in the exigencies of public service by the President of the committee when the District or the Sub-divisional officer is the President and in other cases by the Inspector of Schools in consultation with the authority with whose prior approval he was appointed to the committee under Rule 3 of this Part.

8. No member of a managing committee being an employee of the institution shall attend any meeting at which any matter relating to his pay, promotion or conduct is under discussion. But it will be open to the President to call him for making any statement or representation on the subject but he shall leave the meeting immediately after doing so.

9. No member of a managing committee who is not a member of the staff, shall apply for appointment under the managing committee without first resigning his membership.

10. No member of a managing committee shall enter into any contract for work, or supply of materials or for any sale or purchase with the managing committee except with the previous permission of the President of the committee where he is the District or Sub-divisional Officer the previous permission of the Inspector of Schools shall have to be obtained.

11. Any member who absents himself from three consecutive meetings of a managing committee without the consent of the committee shall cease ipso facto to be member of that committee and the Secretary shall report this fact immediately to the inspector of Schools for confirmation. Further the office of a member of a managing committee other than an ex-officio member shall be vacated subject to confirmation by the Inspector of Schools-

- (i)
if he becomes insolvent;
- (ii)
if by reason of his physical or mental disability he becomes incapable of acting as such ;
- (iii)
on death or on resignation;
- (iv)
on his being convicted of a a criminal offence which in the opinion of the Inspector of Schools is of a serious nature.

12. Occurrence of any vacancy in a managing committee shall be reported forthwith by Secretary of the committee to the Inspector of Schools who shall take steps to fill up the vacancy in the manner in which it was originally filled up. The proceedings of a managing committee during the continuance of such vacancy or vacancies shall not be void provided there is the required quorum.

13. Five members shall form a quorum except in cases of committees with less than eight members where four shall form a quorum.

14. A meeting of the committee will be called by the Secretary at least once a quarter. Not less than seven days notice should be given of the meeting. The notice will set forth the business to be transacted at the meeting and no business other than that so stated will be transacted, except with the consent of three-fourths of the members present. When any business of which notice has not been been given in considered at a meeting, the decision recorded on resolution adopted in regard to such business at the meeting will be communicated forthwith to all the members and action on it will be held in suspense pending reconsideration at a subsequent meeting which may be convened on a requisition made by not less than three members of the committee within seven days of the communication of the original resolution. Failing such a requisition the resolution or decision will be validated.

15. In the absence of the Chairman one of the members present will be elected to preside.

16. The Chairman or President of the meeting will have a casting vote in addition to his ordinary vote when the votes of the members present are equally divided.

17. Under the direction of the committee the Secretary will carry on correspondence with the proper authority on behalf of the committee ; provided that no correspondence shall be made direct to the University or the Government who can be addressed only through the Inspector/Inspectress of Schools and the Director.

18. Subject to the rules in this section the managing committee may frame further rules of business that may be necessary under intimation to the Inspector/Inspectress of Schools.

19. An annual report of the school will be prepared by the Secretary which shall be submitted to the Inspector or the Inspectress of Schools as the case may be in case of high Schools and the Deputy Inspector of Schools in case of Middle Schools for boys and to the Assistant Inspectress of Schools in case of Middle Schools for girls, after being approved by the managing committee.

20. The managing committee will have the general direction and control of the current business of the school which will be conducted by the headmaster in accordance with the rules and orders prescribed by Government.

21. The following particular duties are assigned to the managing committee :

(1)

To see that the particulars of the school does not suffer from preventable causes.

(2)

To undertake the financial management of the school, to collect authorised subscriptions, to see that the fees are realised and that exemptions from payment of fees are not granted except in accordance with the rules in force.

(3)

To arrange for the maintenance of the school house, furniture and equipment in proper repair and in sufficiency for the enrollment, and when their resources are inadequate, to take such steps as are necessary to supplement them by obtaining contributions in money, labour or kind and by applying for grant-in-aid.

(4)

To grant leave to the teachers subject to the prescribed rules in Appendix 1. The grant of leave other than casual leave, and the arrangement made to fill the vacancy being reported to the Inspector of Schools in the case of High Schools and the Deputy Inspector in the case of schools of lower status.

(5)

To appoint persons in connection with the affairs of the school, all such appointments being, however, made with the prior approval of the Inspector or Inspectress of Schools, as the case may be, and subject to the rules in Appendix 1. No. such approval is necessary in case of appointment of person in the menial staff.

(6)

To arrange for half-yearly internal audit of all school funds and verification of stock and furniture. These duties should ordinarily be entrusted to one or two members of the managing committee other than the office bearers and teacher-members. If, there is no such member in the committee competent to take up these duties, the committee may employ an outsider for the purpose on reasonable payment if funds permit.

22. Except where it is ordered otherwise by general or special orders, the managing committee will leave to the headmaster all routine questions in connection with arrangement of classes, admission and transfer of pupils, settlement of the class routine, periodical examinations, awarding of class promotion and all matters of routine relating to instruction, administration and discipline and control of the pupils and the staff.

It will be open to the managing committee, however, to depute one or more of their members to make an enquiry into any of these matters and to report thereon to the department.

23. The managing committee will further perform the duties assigned to them by any special or general orders which have been issued and may hereafter be issued under the sanction of the Government or the Director.

12. Managing Committees of schools managed by Local Bodies.

- 1. Every school maintained by a local body shall be managed by a committee where practicable.

2. The constitution of the committee for school under local bodies shall be as follows :

(1)

President-

(i)

In the case of village schools-

(a)

the local member of the Village Authority where such an Authority has been constituted ;

(b)

failing such an Authority, a leading villager appointed by the inspecting officer in charge of the circle.

(ii)

In the case of urban schools-

The Chairman of the local body or of the Education Sub-committee thereof, or where there are several schools within the same urban area a member or Commissioner residing in the locality or representative of the- community for whose needs the school exists.

(2)

Secretary : Ordinarily, the head teacher of the school.

(3)

Ordinary members : (a) Another person or other persons up to a limit of 8 ordinary members to be appointed by the local body or its Education Sub-Committee-delegation of this power to the inspecting officer being admissible. Ladies should be included as far as possible in case of girls' schools.

The Deputy and Sub-Inspector of Schools will not be members of village school committees in their circles. They are, however, authorised to attend the meetings of such committees, and, when matters are in issue on which the advice of inspecting officers would be helpful, committees should hold such meetings when there officers are visiting their schools.

(b)

The constitution of managing committees for schools under Municipal Boards shall be on the model of the constitution prescribed for schools under Local Boards.

3. The following powers and responsibilities shall be included in the functions of the committees :

(i)

To see that the teachers attend regularly and that the popularity of the school does not suffer from preventable causes.

(ii)

To undertake the financial management of the school, to collect any authorised subscriptions and, in the case of Middle English Schools, to see that the fees are realised and that exemptions from the payment of fees are not granted except in accordance with the rules.

(iii)

To arrange for the maintenance of the school house, furniture and equipment in proper repair and in sufficiency for the enrolment, and to this end to enlist local aid in money, labour and materials when the funds placed by the Board at their disposal are inadequate to requirements.

(iv)

To grant casual leave to the staff subject to such limitation as may be prescribed by the Local Body with the concurrence of the Director.

(v)

To transact by the agency of the Secretary correspondence with the Local Body and the Education Department.

13. Managing Committees of Normal or Training school.

- 1. The constitution of managing committees of Normal and Training Schools is as follows :

(a) For Jorhat Normal School:

1.

The Deputy Commissioner, Sibsagar
President.

2.

The Inspector of Schools, Upper Assam Circle
Vice-President.

3.

The Superintendent of the Schools
Secretary.

4.

The Assistant Inspector of Schools concerned.
Member.

5.

The senior-most Instructor of the Training class.
Member.

6.

The Deputy Inspector of Schools, Jorhat
Member.

(b) For Silchar Normal School:

1.

The Deputy Commissioner, Cachar
President.

2.

The Assistant Inspector of Schools, Cachar
Vice-President.

3.

The Superintendent of the School
Secretary.

4.

The senior-most Instructor of the Training class
Member.

5.

The Deputy Inspector of Schools, Silchar
Member.

(c) For Sootea Normal School:

1.

The Deputy Commissioner, Darrang
President.

2.

The Inspector of Schools, Central Assam Circle
Vice-President.

3.

The Superintendent of the Board.
Secretary.

4.

The senior-most Instructor of the Training class.
Member.

5.

The Deputy Inspector of Schools, Tezpur.
Member.

(d) For Tura Training School:

1.

The Deputy Commissioner, Garo Hills
President.

2.

The Assistant Inspector of Schools, Garo Hills.
Vice-President.

3.

The Headmaster of the School.
Secretary.

4.

The Deputy Inspector of Schools, Garo Hills
Member.

5.

A non-official member to be appointed by the Deputy
Commissioner for a period of not more than three years at a time.
Member.

2. The order rules relating to managing committees of high schools shall apply mutatis mutandis to these managing committees-the rules for managing committees of Government High Schools being applied in case of Government Institutions and those for Government Aided High Schools being applied in case of Government Aided Institutions.

14. Managing committees of other recognised High and Middle schools.

- All recognised High and Middle schools shall be governed by a managing committee in accordance with Rule 6(b)
Section 3.

15. Managing Committees of other school.

- Rules regarding managing committees of schools outside the classes mentioned in Sections 10 to 14 of this Chapter will be prescribed by competent authorities concerned.

Chapter IV

Discipline

16. General Rules.

- 1. Every recognised institution must maintain a 'Conduct Register' in which all cases of breach of discipline by a college student of a school pupil and consequent punishment meted out to him should be recorded by the head of the institution. These entries are to be noted in the Transfer or Leaving Certificate issued, and in the Roll list of the candidates for any public examination if and when such steps are considered desirable by the head of the institution in the interest of discipline.

2. the head of an institution shall scrutinize all applications for admission ; and if he thinks that there is sufficient disciplinary reason to justify his refusal, he may refuse admission to any student or pupil without assigning any reason to the applicant. But he will have to report confidentially the grounds of his refusal to his immediate superior who shall have the power to approve disapprove of his action.

3. Every scholar on its admission to an institution shall sign his name in a Register incorporating a copy of the rules of discipline enforced in the institution.

4. The head of an institution may, with the previous approval of the governing body or managing committee, order any undesirable and trouble-some scholar to leave the institution without assigning any reason if such action is considered to be necessary for the good of the institution. And in such a case a transfer certificate, free of transfer fee shall be issued. Action taken under this rule must be reported in full details through proper channel to the Director who may communicate the same to the University where necessary.

5. During the period of rustication or when a scholar expelled from an educational institution for any major offence no recognised educational institution shall admit the rusticated or expelled scholar unless such order are set aside or modified by any appellate authority competent to do so under these Rules.

6. Scholars shall have to pay fees during the period of suspension. For the period of rustication no fees shall be charged.

7. Expulsion or rustication or removal from an institution for disciplinary reasons carries with it, the expulsion or removal from the attached hostels of the institution and vice versa.

8. No direct complaint shall be allowed to be submitted to any higher authority against the head of an institution or any of its staff by a scholar of the institution or his guardian in regard to disciplinary measures adopted or any punishment inflicted for commission of any offence by the scholar without written permission from the head of the institution concerned. Violation of this rule on the part of a scholar shall be treated as a major offence against discipline and punished as such. This rule does not, however, prejudice or preclude the right of a scholar or his guardian for submission of regular appeal against any order of punishment to the authority competent to hear such appeals under these rules.

9. The following subsidiary measures for improvement of discipline are suggested which the heads of all educational institutions shall adopt.

(i)

Teachers, scholars and guardians may meet occasionally for the purpose of securing the co-operation of the guardians in matters of moral, spiritual and disciplinary training of the scholars and also for discussing matters of general interest that go to benefit the scholars. These meetings shall be held periodically at least twice or thrice a year, on the occasion of Prize Distribution, Annual Sports, Guardians meeting, etc.

(ii)

Teachers shall take part in the organisation of the games provided in the institution.

(iii)

Corporate life and activities of the scholars shall be well organised and properly conducted through Scout Movements, Social Service League, Debating Societies, Publications of Magazines, Historical and Scientific Execursions and such other means.

(iv)

Dignity of manual labour shall be well emphasized through actual work in school and college compounds by way of

keeping the buildings and the compounds of the school, college and hostels attached thereto neat and tidy by well organised labour of the scholars themselves.

(v)

All educational institutions shall endeavour to introduce suitable programmes of moral instructions and measures for inter-communal harmony.

(vi)

All teachers shall be made to realise that their responsibility for all conduct of the scholars of their institutions extends beyond the hours in the class rooms and in the educational premises. Each educational institution must have an organisation to see to the discipline in its charge outside schools and college hours in the public places and also at home to supplement the efforts of the guardians.

(vii)

When any breach of discipline by a scholar comes to the notice of any member of the staff he shall at once report the matter to the head of the institution without fail and also recommend suitable punishment appropriate for the offence.

17. Detailed rules for colleges.

- 1. All colleges shall follow the rules of discipline laid down in the preceding section.

2. For breach of college discipline by a student the Principal is authorised to punish the offender in consultation with the governing body for any of the major offences enumerated in Rule 5 of this section with appropriate punishment of the following form which shall necessarily vary with the gravity and circumstances of each case :

(i)

Fine not exceeding Rs. 20 ;

(ii)

Suspension from the college for a period not exceeding one month ;

(iii)

Rustication for a period not exceeding six months ;

(iv)

Expulsion from the colleges as well as from the hostel in case of boarders ;

(v)

Suspension, forfeiture or withdrawal of scholarship and other concessions attached to any scholarship for a period or for the whole tenure if the offender happens to be a scholarship holder ;

(vi)

Cancellation of all concessions such as remission of tuition fee, fee concessions for a period or on a permanent basis if the offender be a recipient of such concessions.

In inflicting the above punishment the Principal shall submit a report to the Director for confirmation of such orders.

3. All cases of rustication and expulsion shall be reported in a brief statement including the date of rustication or expulsion to the Executive Council of the University. Besides, the Principal of a Government or Government aided college shall also submit a report to the Director with a brief statement of the circumstances leading to the rustication or expulsion.

4. If a student who has been rusticated or expelled from a college desires to continue his studies in another college he may apply to the University authority concerned for permission and the Executive Council of the University after reference to the Principal from which the student has been rusticated or expelled and also to the Principal of the college to which admission is sought, and after full consideration of all the circumstances of the case, shall pass such order as they think proper. All such cases shall be notified to the Director by the college authorities.

5. Any of the following acts by a student shall be considered as a major offence against discipline-

(i)

Habitual unpunctuality;

(ii)

Various forms of immoral acts ;

(iii)

Use of any intoxicating drug in the premises and compound of the college or of the attached hostels ;

(iv)

Hartal or hunger strike of any kind ;

(v)

Indulging in any strike or picketing ;

(vi)

Resorting to violence of any kind ;

(vii)

Acts against public sanitation and injurious to the public or any act calculated to cause public nuisance, disturbance of public tranquillity, communal troubles or breach of public peace ;

(viii)

Exhibition or introduction of any political or party emblem into the premises or compounds of the college and the attached hostels ;

(ix)

Joining any anti-Government political demonstration ;

(x)

Holding any meeting or party of a political character in the buildings of the college and the hostels and in the compound and play grounds belonging to the college, without written permission or against the order of the Principal;

(xi)

Any act that is an offence punishable under the Indian Penal Code or punishable under any special or local laws.

6. An appeal against any order of punishment, passed against a college student by the Principal shall lie to the Executive Council of the University in case of rustication and expulsion and to the Director in case of other forms of punishment. Such appeal shall have to be submitted within 30 days from the date of receipt of the orders of punishment by the student concerned.

7. Any order of punishment of the Principal, and any order passed on an appeal, shall be communicated to the student and the guardian by the Principal.

In case direct receipt of any order of punishment passed on an appeal is desired by the aggrieved party, an application for it with a fee of Rs. 2 shall have to be submitted to the appellate authority.

8. Any offence short of any of the major offences enumerated in Rule 5 above, that goes against good administration and good working order of the college, committed by a student shall be a minor offence. For any minor offence against college discipline, the Principal may punish a student with a fine not exceeding Rs. 10 and for repeated minor offence he may punish him with any form of punishment suggested for major offence, according to the procedure laid down for the punishment for such major offences in these Rules.

9. Malpractices in examinations shall be severely repressed. The following detailed rules are laid down for observance :

(a)

use of fair means in periodical college examinations shall be treated as a minor offence for the first instance and its repetition shall be treated as a major offence and punished as such :

(b)

a candidate found with a book or notes in the examination room or copying from others or using other unfair means in an annual promotion examination or a test examination held for selection of candidates for any public examination shall be reported on to the Principal who shall debar him from promotion or from appearing in the ensuing public examination concerned, as the case may be, except when any other lesser punishment is authorised by the Director in special circumstances on the recommendation of the Principal:

(c)

a candidate found with book or notes in the Examination room or copying or using other unfair means in any scholarship or other public examination shall be expelled from the examination room by the Presiding Officer of the examination and his name shall be reported to the authority concerned for issue of orders cancelling his examination and for such other actions as may be prescribed by that authority.

"The authority" referred to in this rule shall be the University in case of examination held by them, and the State Madrasa Board and the Assam Sanskrit Board in case of examination held by these Boards.

10. It is left to the discretion of the Principal to consult the District Officer of the district in which the college situated in dealing with cases of major offences of serious type or in taking up preventive measures against commission of such offences by college students.

11. Any action taken by the Principal or any advice tendered by the District Officer under Rule 10 above shall be

reported to the Director and the Principal shall be guided by any advice the Director may prefer to tender in connection with the matter.

18. Detailed rules for schools.

- 1. All schools shall follow the rules of discipline laid down in Section 16 of this Chapter as far as these are applicable to them.

2. Any of the following acts by pupil shall be considered as a major offence against discipline :

- (i)
habitual unpunctuality ;
- (ii)
various forms of immoral acts ;
- (iii)
smoking or using any intoxicating drug in the premises of the school or of the attached hostels ;
- (iv)
hartal or hunger strike of any kind ;
- (v)
indulging in any strike or picketing ;
- (vi)
resorting to violence of any kind ;
- (vii)
acts against public sanitation and injurious to the public or any act calculated to cause public nuisance, disturbance of public tranquillity, communal troubles or breach of public peace ;
- (viii)
exhibition or introduction of any political party emblem into the premises or compounds of the school and the attached hostels ;
- (ix)
joining any anti-Government political demonstration ;
- (x)
holding any meeting or party of a political character in the buildings of the school and hostel and in the compound and play grounds belonging to the school, without written permission or against the order of the headmaster ;
- (xi)
any act that is an offence punishable under the Indian Penal Code or punishable under any special or local laws.

3. The following forms of punishment may be inflicted on a pupil for major offence :

- (i)
fine not exceeding Rs. 10.
- (ii)
suspension from the school for a period not exceeding 20 days ;
- (iii)
rustication for a period not exceeding 2 months ;
- (iv)
expulsion from the school as well as from hostel attached to the school in case of boarders ;
- (v)
suspension, forfeiture or withdrawal of scholarships and other concessions, attached to any scholarship for a period or for the whole tenure, if the offender happens to be a scholarship holder ;
- (vi)
cancellation of all concessions such as fee remission, etc., temporarily or on a permanent basis if the offender be a recipient of such concession.

4. The headmaster is competent to inflict appropriate punishment on a scholar of his institutions, short of rustication or expulsion, for any major or minor offence. All heads of schools have to take due notice of offences committed by the scholars and met out appropriate punishment to serve the purposes for which punishments are meant.

5. Following are classed as minor offences against school discipline :

- (i)

idleness;

(ii)

inattention to class teaching or class work ;

(iii)

irregular attendance;

(iv)

indulgence in any noise calculated to disturb his fellows :

(v)

use of key to text books ;

(vi)

unhygienic habits such as spitting on the floor or on the walls of a room or verandah;

(vii)

disfiguring walls, furniture, etc., belonging to the school ;

(viii)

disobedience or defiance of the authority of the teachers ;

(ix)

telling lies;

(x)

any other form of offence against minor morality ;

(xi)

any act that goes against goods order in the school.

6. According to the gravity of the circumstances and the effect of the commission of any of the minor offences against discipline suitable punishment may be inflicted upon the offender by the headmaster of the school who is the sole authority for this purpose.

Following forms of punishment are suggested and the headmaster is to select any one of them which he thinks appropriate in any particular case :

(i)

warning with advice ;

(ii)

caning on the palm of the hand ;

(iii)

detention after school hours with or without task ;

(iv)

additional tasks as home-works ;

(v)

fine up to Rs. 5.

The headmaster is authorised to inflict any one of the punishments on his own authority.

Note. - When punishment prescribed for minor offences fail to produce the desired result and commission of such minor offences is repeated the offender may be treated as committing a major offence and shall be punished as such.

7. Malpractices in examinations shall be severely repressed. The following detailed rules are laid down for observance :

(a)

A pupil using unfair means in periodical school examinations other than annual promotion examination shall be punished by and under the orders of the headmaster, the nature of the punishment being left to his discretion, a second repetition of this offence will ordinarily be visited with corporal punishment and its repetition for third time shall be treated as a major offence and punished as such.

(b)

A candidate found with book or notes in the examination room or copying from others or using other unfair means in an annual promotion examination or test examination held for selection of candidates for a public examination shall be reported on to the headmaster who shall debar him from promotion or from appearing in the ensuing public examination concerned, as the case may be.

(c)

A candidate found with book or notes in the examination room or copying or using any unfair means in a scholarship or other public examination shall be expelled from the examination room by the presiding officer of the examination and his name be reported to the authorities under-noted.

(i)

The Deputy Inspector of Schools in case of examinations the scope of which is limited to a sub-division or a district and the Inspectress of Schools in case of similar examinations for girls.

(ii)

The Director in all other cases.

8. Assistant teachers of a school are also competent to punish scholars for minor offences short of fine. When offences are such that the appropriate punishment are beyond their competence they shall submit report to the headmaster regarding suitable punishment and the headmaster shall take necessary action to punish the offender accordingly.

9. In an extreme case, when rustication or expulsion is considered to be the appropriate punishment for any of the major offences, the head of the institution shall place the matter before the managing committee. If the managing committee decides to punish the offender with rustication or expulsion, the order of rustication or expulsion shall be drawn up in Form 7.

10. The headmaster shall forward a copy of the order of rustication or expulsion to-

(i)

the parent or guardian of the scholar concerned ;

(ii)

the Inspector of Schools concerned ;

(iii)

the Director of Public Instruction ;

(iv)

the Inspectress of Schools in respect of Scholars from girls schools under her direct control;

(v)

to the University authority in case of a high school pupil of classes IX and X.

11. Within 30 days from the date of receipt of the order of rustication or expulsion, the parent or guardian of the scholar so punished may submit an appeal to the Inspector or Inspectress of Schools, as the case may be. If the punishment is substantially upheld by the first appellate authority, a second appeal lies to the Director within 20 days from the date of receipt of the order passed on the first appeal. The decision on the second appeal shall be final.

12. When no appeal is received within the allowed period by the Inspector or the Inspectress of Schools he or she shall confirm the decision of the managing committee.

In case an appeal is received within the period of 30 days the authority hearing the appeal shall ask for a report from the managing committee in detail as to the commission of the offence and after considering all the facts presented he shall pass such orders as may be deemed appropriate to the occasion. The order passed on the appeal shall be submitted by the appellate authority to the Director University authority where this is necessary and a copy shall also be forwarded to the appellant through the managing committee.

For any second appeal a notice shall be given to the Inspector or the Inspectress of Schools, as the case may be, by the aggrieved party, and the second appeal may be submitted to the Director through the Inspector or the Inspectress of Schools concerned within the time allowed. The officer on receipt of the second appeal petition shall forward it to the Director with all the records of the case and with a brief note on it. The Director after perusal of the whole records may pass any suitable order that is considered just and equitable in the circumstances of the case. He shall forward the final decision to the Inspector or the Inspectress of Schools concerned for communication to the school authority and the party concerned.

13. All orders of confirmation of the punishment or rustication or expulsion on any final appeal or without appeal shall be circulated among the schools of the State and also published in the Assam Gazette in three consecutive publications under the signature of the Inspector or Inspectress of Schools, as the case may be.

14. In respect of disciplinary measures relating to school discipline in autonomous areas, the Deputy Commissioner shall perform the function assigned to the Inspector or Inspectress of Schools under these Rules.

19. Rules for hostels of both schools and colleges.

- 1. All the rules regarding discipline in the foregoing three sections of the chapter shall apply mutatis mutandis to

hostels with the modifications that all minor offences committed by a boarder are to be dealt with by the Hostel Superintendent who may inflict punishments prescribed for such offences.

The following rules shall apply to hostels in addition. Major and minor offences referred to in these Rules shall be dealt with in the manner prescribed in Sections 17 and 18 of this Chapter read with the foregoing part of this rule.

2. Ordinarily every boarder in a hostel attached to an educational institution shall have to observe the following routine :

(a)

From 5-30 a.m. to 6.30-answering morning roll call, physical exercise and morning tea.

(b)

From 6-30 a.m. to 8-30 a.m.-study hours.

(c)

From 8-30 a.m. to 9-30 a.m.-bath and mid-day meal.

(d)

From 10 .am. to 4-30 p.m.-attending school and college classes.

(e)

From 5 p.m. to sunset-tea, tiffin and play.

(f)

From sunset till 9 p.m.-answering evening roll call and the study.

(g)

From 9 p.m. to 10 p.m.-evening meal and rest.

(h)

From 10 p.m. to 10-30 p.m.-for schools and from 10 p.m. to 11 p.m. for colleges-light reading and retiring for sleep.

The timings of this routine may be modified by the Hostel Superintendent according to variation of rising and setting of the sun. On working days the hostels should have the atmosphere of study from 10-30 a.m. to 4-30 p.m. although some of the boarders may not have classes in the case of colleges. On holidays and half-holidays, the Superintendent shall prescribe the routine to be followed.

Prayers and devotional exercise for spiritual welfare of the boarders in accordance with their religious faiths will be encouraged in their own rooms without disturbance to others.

3. In sickness, a boarder may not be able to observe the routine in full. In such cases, the Medical Officer or the Superintendent will guide the boarder as his daily observance of rest or work.

4. Every boarder must apply for leave of absence and where practicable such application must be supported by a letter of request from the parent or guardian of the boarder to the Superintendent of the hostel, and the boarder must obtain written sanction from him. If a boarder absents himself from the hostel without permission of the Superintendent it will be a major offence against discipline.

5. Without the permission of the Superintendent no boarder shall introduce any stranger to the hostel compound and hostel premises. Violation of this rule shall be counted as major offence.

6. Boarders must receive all postal communications and articles through the Hostel Superintendent and not directly from postal peon or a post office when so directed. No boarder shall possess or bring prescribed or prohibited books, papers or magazines to the hostel. Violation of this rule shall constitute a major offence.

7. Absence without leave for the night or at evening roll call or after 9 p.m. without permission of the Hostel Superintendent will constitute a major offence against discipline if circumstances leading to or resulting from such absence are of serious character.

8. Playing cards and gambling within the hostel will be counted as a major offence.

9. Any act by a boarder that goes against good order in the hostel or is done in contravention of order of the Superintendent shall be counted as a major or a minor offence according to the case.

10. Every Hostel Superintendent must maintain a "Conduct Register" in which all cases of breach of discipline by a boarder and the punishment meted out to him should be recorded. This register should be submitted to the head of the institution concerned from time to time to enable him to make a corresponding entry in the conduct register mentioned in Rule 1 of Section 16 of this Chapter regarding the minor offences against hostel discipline dealt with by the Hostel Superintendent.

11. Every boarder on his admission to a hostel shall sign his name in a Register incorporating a copy of the rules of discipline enforced in the hostel.

Appendix I

Service Rules for Employees of Government Aided Schools

1. Appointment and dismissal. - The managing committee of a school is the authority to appoint persons in connection with the affairs of the school and as such it is the authority to dismiss or remove such persons :

Provided that-

(1)

all cases of appointment (except temporary appointments for not more than three months), dismissal or removal concerning members of the teaching or the ministerial staff of a school must have the prior approval of the Inspector of Schools ;

(2)

no person suspected to be connected with anti-State or subversive activities or with any unlawful party whether directly or indirectly shall be retained in the services of an aided school;

(3)

no person over 60 years of age shall be retained in the teaching staff except on production of a certificate of physical fitness from a Government Medical Officer not below the rank of Assistant Surgeon Grade I and with the approval of the Director of Public Instruction.

2. Conduct and discipline. - No employee on the aided school shall-

(a)

accept any private employment; and

(b)

any office under any political party; except with the prior approval of the managing committee.

3. If the managing committee is of the opinion that the participation of any of its employees in political activity is injurious to the interest of the school it may order such employees to refrain from such activities.

4. If in the opinion of the Government retention in service of an aided school of any person is found to be injurious to the interest of education or to any public if they may on their own motion ask the managing committee of the school to remove such person from service in that school and debar him from appointment in other aided schools.

5. Any of the following penalties may be imposed on an employee of an aided school by the managing committee for good and sufficient reasons.

(i)

Dismissal or removal;

(ii)

Reduction in rank ;

(iii)

Recovery from pay ;

(iv)

Stoppage of increment;

(v)

Censure :

Provided that-

(1)

None of these penalties shall be imposed on an employee of an aided school until he has been given a reasonable opportunity of showing cause against the action proposed to be taken in regard to him ;

Provided that this clause shall not apply-

(a)

where a person is dismissed or removed or reduced in rank on the ground of conduct which had led to his conviction on a criminal charge;

(b)

where the Inspector of Schools is satisfied that for some reasons, to be recorded in writing, it is not reasonably practicable to give to that person an opportunity of showing cause ; or

(c)

where the removal of any person is ordered by Government under Rule 4 above and if in such a case Government are

of the opinion that in public interest it is not expedient to give to that person such an opportunity.

(2)

An order of dismissal or removal issued as a penal measure on a member of the teaching staff will ordinarily be void unless it is passed in a meeting of the managing committee where at least three-fourth of the members are present.

(3)

No order of dismissal or removal passed by a managing committee on a member of the teaching or the ministerial staff will be given effect to without the prior approval of the Inspector of Schools.

6. Appeal. - Members of the teaching and the ministerial staff of aided schools shall have a right to appeal to Government through the Inspector and the Director against any order of dismissal or approval passed by a managing committee. The appeal must be submitted within three months from the date of receipt of the order of dismissal or removal by the employee, otherwise the appeal shall not be entertained.

7. When there are grave allegations against an employee of an aided school, which if ultimately proved to be true are likely to result in dismissal or removal of the employee or if the continuance in office of that employee may prejudice the enquiry to be made into these allegations or may cause disappearance of material evidence, the employee may be placed under suspension pending enquiry by (a) the Headmaster in case of employees under him with previous permission of the Secretary of the Managing Committee. If the Headmaster himself is the Secretary the previous permission of the President of the committee should be obtained, and (b) by the President of the committee in case the employee in question is the Headmaster himself.

8. A meeting of the managing committee shall be convened within 10 days from the date of issue of the orders of suspension under Rule 7 above. If the Headmaster orders the suspension and if he is not the Secretary he shall immediately inform the Secretary to convene the meeting accordingly. If the Headmaster who is also the Secretary is placed under suspension the President shall convene or cause to convene the meeting accordingly.

9. Subsistence allowance during period of suspension. - For the period of suspension and until the enquiry is over an employee may be allowed a subsistence allowance not exceeding one fourth of his pay which should be fixed by the managing committee considering the circumstances of the case.

10. Fixation of pay, etc., for period of suspension after the expiry is over. - The period of suspension may be treated as a period spent on duty if the employee is honourably acquitted of the charges for which he was suspended and otherwise, the period may be treated in such manner as the managing committee may deem proper in accordance with the circumstances of the case.

11. The managing committee may sanction duty pay up to the limit of the pay to which the employee would have been entitled had he not been suspended subject to availability of funds if the employee is honourably acquitted and otherwise, i.e., if he is not honourably acquitted, the managing committee may sanction such allowance for that period as it deems proper in accordance with the circumstances of the case.

12. Employees of aided schools may be granted casual leave up to 15 days in each calendar year and for other kinds of leave the Leave Rules of 1934 applicable to Government officers of vacation department may be applied to them subject to availability of funds.

13. A Service Book shall be maintained for each employee of Aided Schools in the manner prescribed for Government Officers.

14. Travelling and daily allowance. - Employees of aided high schools may be allowed travelling and daily allowance at the rates ordinarily admissible to Government officers drawing similar pay : provided that the Headmasters of aided high schools may be allowed travelling allowance and daily allowance as admissible to the Headmaster of Government High Schools, irrespective of the pay drawn by them subject to availability of funds.

15. Additional rules to be framed. - Without prejudice and in addition to the foregoing the managing committee may make detailed rules governing the conditions of service, conduct, discipline, etc., of their employees which should be submitted to the Director through the Inspector of Schools for confirmation.

Appendix 2. [Not printed]

Appendix 3. [Not printed]

Appendix 4. [Not printed]

Appendix 5

Governing body of Cotton College, Gauhati

1. The Governing Body in connection with administration of the Cotton College is constituted by Government with the

principal as the Secretary.

2. The duties and functions of the Governing Body are as follows :

(1)

To determine the general scheme of studies of the College and to advise Government through the Director with regard to the inclusion of additional subjects.

(2)

To advise with regard to changes of or additions to staff.

(3)

To consider and initiate projects for the improvement of the College.

(4)

To deal with questions of-

(a)

Discipline vide rules in Sections 17 and 18, and

(b)

Grant of fee-remission under rules prescribed by Government.

(5)

To deal with any questions and to exercise any functions that may be referred to or assigned by the Director or by Government.

3. Meeting of the Governing Body shall be held ordinarily once a quarter.

Appendix 6. [Not printed]

Appendix 7

Maintenance of registers and accounts in Educational Institutions

1. The following registers, etc., are to be maintained in recognised schools :

(1)

Admission register.

(2)

Transfer certificate file.

(3)

Daily and abstract attendance registers.

(4)

Cash Book.

(5)

Contingent account book.

(6)

Subsidiary account book.

(7)

Fee collection register.

(8)

Acquittance rolls of staff and of scholars.

(9)

Attendance register of staff.

(10)

Punishment book.

(11)

Conduct and progress register.

(12)

inspection book.

(13)

Proceedings of committee meetings.

(14)

Proceedings of teachers' meeting.

Village Schools may dispense with Nos. (5), (6), (7), (9), (11), (13) and (14).

2. In Government institutions, the head of the institution is responsible for all money that passes through the accounts.

3. A standard form is prescribed for the general cash book.

Daily totals of receipt and disbursements under the various heads must be entered in the cash book, which must be signed each day by the head of the institution as showing that all entries are correct.

4. The fee register is combined with daily attendance register.

Fees and fines of all kinds, excepting those for which separate accounts are prescribed, must be entered daily after realisation and the daily totals transferred to the cash book.

Class masters, who are responsible for the entry and realisation of fees and fines, will certify monthly of their fee registers the correctness of the entries and the monthly totals of fees and fines will be checked by the head of the institution with the cash book.

5. Unrealised balances of fees and fines be not carried over from months to month in the monthly abstract accounts.

The names of defaulters in any month will be struck off on the last day of the month and their dues entered in the abstract for that month only.

6. Deposits and caution money will be held in deposit at the treasury, independently of the general cash book.

7. All receipts must be remitted daily to the treasury.

8. All sums drawn on establishment and scholarship bills must be disbursed, if possible, on the day of drawing.

Appendix 8

Instructions Regarding Inspection of Schools

Part I

1. General. - The principal duties of an inspecting officer are to improve the standard of instruction, to the best of his power, in the schools which he visits, and to see that the regulations of the Education Department are followed in all institutions under his charge.

2. Inspection Reports. - Each school is provided with an Inspection Book which is intended primarily to contain systematic criticism and advice written by inspecting officers for the benefit of the staff and managers of the schools.

Frequently, remarks made in the Inspection Books of schools show an absence of connection and continuity of purpose. Criticism made and advice given in one inspection note are followed some months after by another and more or less independent set of criticisms and suggestions, and there again by another set, and so on, little or no sign being there that the writer had in view a definite policy of finding out those short-comings in the school which he might hope to remedy and of trying to remedy them by a repetition of effort.

It is necessary for every inspecting officer to be quite clear, in the case of every school or class of schools which he visits, as to what specific improvements he aims at bringing about by a succession of visits within a certain period. When one set of faults and their remedies has been dealt with to the best of his ability, he can take up another set.

To the end proposed it is necessary that inspecting officers, particularly Deputy Inspectors and Sub-Inspectors and Assistant Sub-Inspectors maintain log books in which to note the programmes of improvement which they are striving to introduce and with regard to which they are prepared to demonstrate in any school.

This does not mean that inspection is to be confined to the narrower limit thus indicated ; all sorts of criticisms and suggestions can and should be made at any time, but a compact and continuous policy should always be in evidence (For full instructions see Part II of this Appendix).

3. Conferences. - Inspectors may hold periodical conference of their subordinates, e.g., of Deputy Inspectors or of headmasters of high schools, at which views can be exchanged and policy discussed.

Deputy and Sub-Inspectors will find it useful to collect teachers occasionally at convenient centres in their areas, for purposes of discussion and instruction.

4. Tour diaries. - The Inspectors and Inspectress will submit monthly tour diaries to the Director.

The Assistant Inspector will submit his monthly diary to the Inspector and the Assistant Inspectress to the Inspectress.

Deputy Inspectors will submit their diaries to the Inspector sending at the same time copies to the Chairmen of their respective School Boards.

The diaries of Sub-Inspectors will submit their diaries to the Inspector sending at the same time copies to the Chairmen of their respective School Boards.

The diaries of Sub-Inspectors will be submitted through Chairmen of School Boards and Deputy Inspectors to the Inspector.

Controlling officers to whom tour diaries are submitted are authorised to make deductions from travelling allowance bills in cases where unnecessary or ill-planned touring has been done.

The number of days spent by an inspecting officer elsewhere than at his own headquarters under the orders of his departmental superior in compiling or aiding in the compilation of the annual report and returns will be reckoned as days spent on tour.

Half the number of days so spent at headquarters by Sadar Sub-Inspectors of schools will be reckoned as tour days up to a maximum of 10 days.

5. Inspection by officers outside the Department. - In the case of remarks recorded in the visitors' book or inspection book of a school by the Governor, the Minister, Deputy Ministers, Parliamentary Secretaries or by the Commissioner, the Deputy Commissioner or other officers not belonging to the Education Department the following procedure is to be observed :

(a)

In English Schools-

(1)

Notes recorded by the Governor or the Minister or Deputy Ministers must be communicated at once by the Head-master of the school to the Director of Public Instruction.

(2)

In other cases a copy of the note must be sent at once to the officer who recorded it, and a copy to the Inspector of Schools.

(b)

In vernacular schools where the teacher is ignorant of English, he will submit the note immediately in original to the Deputy Inspector, who will return a copy in the vernacular for the use of the school and will act further as directed for the notes recorded in English Schools.

6. Inspection by the Director of Public Instruction and other Departmental Officer. - Before a visit of the Director of Public Instruction to any High or Normal School, the Headmaster. Headmistress or Superintendent will prepare and have ready for him a half-margin summary note of the instructions and criticisms contained in his last inspection note and any intermediate notes of other officers with a brief statement opposite of the action taken thereupon in each case.

Headmasters, Headmistresses, Superintendents and Assistant Headmasters will also on such occasions submit a note of any innovation they have introduced to which they wish to invite attention or any particular department of the school work which has engaged their special attention with a view to improvement.

A copy of the note recorded in the visitor's book or inspection book of school by an educational officer above the rank of the Deputy Inspector of Schools should be sent to the officer who recorded it. In the case of notes recorded by the Director of Public Instruction a copy should also be sent to the Inspector of Schools.

7. Reference to Civil Officers. - Standing orders provided for reference to civil officers by the Inspecting staff in certain cases.

Apart from cases thus provided for, the Inspector should take every opportunity of keeping the Commissioner and Deputy Commissioner informed of current charges and developments and of seeking their advice.

Part II

Log Book Circular No. 8266-6a-31-166 of 1971 of the Then Director of Public Instruction

Dated 12th October, 1947

2. It is not a primary part of the duties of Divisional Inspector, whose lower grade schools are numbered by the thousand, to advise with regard to any particular school of this class that in Geography the teaching is fair, in Arithmetic indifferent. It is his duty to examine the school primarily with reference to the work of the local inspecting staff. If he finds in a school at headquarters that the teaching, the organisation, the administration is remedially unsound, he may conclude that the faults he finds are multiplied a hundred-fold in the sub-division. The application of this advice, his approval or his censure, should be less to the school authority than to the Deputy Inspector and, if much may and place in the (Inspection Book) of the school, much should also find place in the log book of the Deputy Inspector. It will be clear that remarks in praise of or derogatory to a Deputy Inspector should find no place in the inspection book of a school. On the other hand, such remarks communicated by word of mouth too frequently go in at one ear and out at the other, finding no abiding place in the memories either of the Inspectors who issue them or of the Deputy Inspectors to whom they are issued.

3. A defect of continuity or persistence of purpose is common to inspection throughout the State. A perusal of almost any inspection book will show that stark and corrigible faults have been in existence for ten years in schools which have been inspected in that period some twenty or thirty times. Intermittent notes neglect them. Seldom or never is any continuity or persistency manifest save a general and unfocused purpose of improvement. In the result I find schools light beneath the weight of ten years good advice totally disregarded.

4. It is common in these times to speak of military discipline. We may stop very far short of that and yet move far ahead of our present disciplinary relations. Some evidences of purpose are required, some exercise of discipline, the state of affairs will no longer serve when an inspecting officer of any grade can visit a school with little in his mind save a general idea of investigation or improvement and, resuming his tour in the same circle months later, visit the same school with the same ambition equally earnest but applying itself in neglect of what has gone before. I suggest that Inspectors should frame annually a definite and limited policy of improvement, and should invite Deputy Inspectors to do the same that, item by item the policy should be pursued and overtaken, being corrected and enlarged periodically as success follows its application.

5. To the end proposed it is necessary that inspecting officers, particularly Deputy and Sub-Inspectors (and Assistant Sub-Inspectors)* shall hereafter maintain log books in which they note the programme of improvement which they are striving to introduce and with regard to which they are prepared to demonstrate in the headquarters schools or any others which the Inspector may select, the Inspector on his periodical visit of inspection to the sub-division might record his views upon the reality and value of the Deputy Inspector's ideas and the success attending his efforts to have them brought into effect. The Deputy Inspector might act similarly with reference to the Sub- Inspectors (and Assistant Sub-Inspectors)* serving under him.

6. It will of course be understood that a Deputy Inspector deciding to concentrate on particular points cannot thereby exempt himself from the duties of general inspection. He must not, for example, allow the pandits to neglect Geography because he is paying particular attention to History, to allow untidiness to flourish on slates because he has set his heart on securing neatness and care on paper. Further, it is inadvisable that any one should fix on a large number of items on which to concentrate or should pass from any programme of advance before he has assured himself that the ground gained has been consolidated.

7. Generally speaking, what is desirable to abolish absolutely from our system is the habit of satisfying the the demands of inspection by the mere discovery of defects-defects which could have been postulated without a visit, the habit of inspection by a kick in passing, the lack of definite purpose and of concentration and continuity of purpose-faults all of them from which some of our inspecting officers are happily free but which vitiate in a greater or lesser degree the work of many.

Finally, I would advise inspecting officers to avoid extremes of praise or blame. There are few schools which merit either. The great majority are middling. And the safer course ordinarily is to improve and to build upon what is good in a school than to proceed merely by the deletion and reprobation of what is bad.

In all cases the inspecting officer is in a strong position. Failure to obey list instructions may be followed by disciplinary action-withdrawal of recognition, reduction of grant and so forth. The more sparingly such action is used the better. But if it is used should be used firmly.

8. Inspecting officers must not regard these instructions as partaking of the nature of a reprimand. But many are inexperienced, many lack instruction, and on the whole the energy and the ability of the inspecting staff are not being applied to the best advantage. A much more rapid rate of improvement is possible in our schools than now obtains-a much more rapid rate will, I am sure, follow whole-hearted action on the lines indicated.

9. I shall be happy to publish periodically for guidance any useful schemes or programmes framed and successfully carried out by individual inspecting officers of all grades. It would be of particular value in connection with any such scheme if the officer responsible for it indicated the means which he had used to secure economy of effort and the full co-operation of the teachers concerned e.g., by holding central meetings of teachers at which discussion might proceed and at which individual teachers whose work had been marked out as good might demonstrate for the guidance of their fellows.

10. One hundred and fifty spare copies are enclosed. Inspectors will issue instructions to officers serving under them and will take such measures as are necessary to ensure that their instructions are regarded.

Inspection note on the log book of a Deputy Inspector of Schools

11. This will not do at all. I have spoken at length to the Deputy Inspector.

The programme is general instead of specific. I want something much less ambitious. Let the Deputy Inspector divided the field of view into compartments, say-

(1)

Instruction;

(2)

Organisation;

and let him deal with a simple point in each. Instruction explains itself. Organisation would include such matters as punctuality and regular attendance, the school routine, development of informal pupil-teachership system (Cf. Tols) arrangement of classes and forth.

12. A single point or subject having been selected for special attention, let the Deputy Inspector concentrate on this point until he has achieved a substantial and lasting improvement.

13. It will not, of course, suffice merely to record in the log book the point or points selected for attention. In hat case two words might suffice for years, e.g.-

(1)

Map drawing;

(2)

Attendance.

The Deputy Inspector should work out carefully what it is he aims at doing what the faults are which he observes and believes that by present attention he can correct and by what means he proposes to secure amendment. The first draft will require amplification and correction in the light of experience and the necessary record will find place in the log book.

14. That I may not write merely critically but indicate how it is that the work should be done about: I give an example :- The Deputy Inspector tells me that he would like to concentrate on handwriting. Well, that is a wide subject. But, suppose that it can be taken as a whole, a programme might be worked out on some such lines as these :

I. Handwriting on slates and in copy books.

Aims

To secure clean work in strict accordance with the syllabus and with the models set by the writing slips or reading sheets.

Faults to be corrected

(1)

Incorrect formation of letters.

(2)

Departure of vertical lines from the vertical, horizontal lines from the horizontal-lack of parallelism throughout.

(3)

Irregular spacing between letters, between words and between lines.

(4)

Drawing instead of writing, e.g., in large writing, drawing outline and filling in mass by scrubbing.

(5)

Undue thickness or fineness of lines.

(6)

Lack of uniformity from line to line and from page to page.

(7)

(Most important) Finger marks, blots, dirt and general untidiness.

II. Current Handwriting in exercise books.

Aims

To secure clear, neat, legible work throughout all written exercises.

Faults to be corrected

(1)

Generally as in I above omitting (4) and (5) and paying very particular attention to (2), (3) and (7).

(2)

Careless figuring in arithmetic work.

(3)

Failure to arrange, in arithmetical work, for the clear spacing of figures and the setting in separate vertical columns of figures which have to be added or subtracted from one another, e.g.-

1795

3

17953

816

4

8164

234

58

Instead of-

23458

45

6

456

17

124

0

171240

15. With regard to the means to be adopted to effect an improvement. I must leave matters to the Deputy Inspector advising only on these points as indicative :

(1)

The quality of handwriting depends not only on the ability of the writer, but on the instrument he uses and the surface on which he writes.

A broad rounded point for instance is desirable for large-sized vernacular writing, a fine point for small-sized. The pen should be of proper length and thickness. Good writing cannot be expected of a child who wields a two inch reed stump of about an eighth of an inch in thickness.

At present no attention whatever is paid by teachers to the instruments used by their pupils. The Deputy Inspector will therefore have to force attention to this point and by experimenting himself to arrive at a position in which he can usefully advise the teachers on the subject (not by general advice but by demonstration).

(2)

The use, behind the unruled page, of slips with guiding lines heavily ruled on them horizontally or horizontally and vertically, until regularity becomes a matter of habits.

(3)

The use of good models e.g., on such writing slips those approved in girls schools.

(4)

The display of successful work and the summoning of pandits whose work is unsatisfactory to meet the Deputy or Sub-Inspector for instruction in the nearest school in which the work is good.

16. These are merely suggestions. Thought and experience will reveal to the Deputy Inspector the lines on which he can most usefully proceed. He will have to bear in mind however that so far as formal writing in copy book is concerned, the teacher can give but little supervision while the work is actually in progress. Having several classes to deal with, he sets one or more to their copy books in order to leave him free to take other subjects in the remaining classes. Let it also be borne in mind that good writing in copy books is a subsidiary matter, and is meaningless except as a step towards the accomplishment of neat, clear, regular handwriting. The true test of a school in this subject is not its copy-book writing but its writing in exercise books, on slates and in examination papers.

Appendix 9

Principal Points for Office Inspection

Part I

Office of Inspectors and Inspectress of Schools

1. Are the Account Rules observed ?

2. Are following registers or books maintained and kept up to date ;

(i)

Cash Book-

(a)

To be compared with the subsidiary registers (ii) and (iii).

(b)

Is it checked by the officer-in-charge ?

(c)

Are all erasure and alterations authenticated by the initials of the Controlling Officer ?

(ii)

Contingent register-

(a)

Is a separate part of the register allotted to each kind of contingencies ?

(b)

Are all vouchers which do not accompany the bills which they vouch for duly cancelled by the drawing officer ?

(c)

Are detailed bills punctually submitted to the controlling officer ?

(d)

Are all erasures and alterations authenticated by the initials of the controlling officer ?

(e)

When was the cash balance last tested ?

(iii)

Acquittance roll of establishment-

Are all sums drawn promptly disbursed, actual payees' receipts being taken and undisbursed amounts duly refunded ?

(iv)

Registers of countersigned bills-

(1)

Travelling allowance register.

(2)

Scholarship register.

(3)

Grant-in-aid registers :

(a)

Maintenance grants.

(b)

Capital Grants.

Do these registers show that the business of counter signature is promptly despatched ?

(v)

Register of letters received.

(vi)

Register of letters issued.

Are these registers maintained in the standard form ? Do they show that the correspondence of the office is promptly dealt with ?

(vii)

File register.

(viii)

Index register.

Are records kept in an orderly manner so that they are readily accessible-to be ascertained by test use of index and file registers ?

(ix)

Is there a casual leave register ?

(x)

Trust Fund account book-

It is maintained in accordance with the special rules on the subject ?

(xi)

Is there a leave ledger and is it kept up to date ?

3. Are the circular file books in order and up to date, Government and Departmental circulars being filed separately ?

4. Is a catalogue of the office library maintained ?

5. Is an account of service stamps maintained and does it show the exercise of a careful economy ?

6. Does every office assistant have a list of returns and reports due to the Head office, and are such returns and reports submitted punctually ?

7. Are reminders issued when they are due ?

8. Are the service books complete with all entries therein duly attested ?

9. Are the manuals and the codes up to date with the correction slips duly posted and all revivals noted ?

10. Is due economy observed in contract contingent expenditure ?

11. Are the office assistants punctual in attendance ?

12. Does the work of any assistant call for special commendation or for censure ?

13. Is the office well arranged and the rooms clean and in good order ?

14. Are arrangements made for the periodical destruction of useless records ?

15. Observance of rules and orders.

16. General remarks.

Part II

Offices of Deputy Inspectors of Schools

Accounts

1. Are the following registers or books maintained in appropriate forms and posted up to date :

(i)

Cash book-

(a)

Are the each entries from the subsidiary register (ii) to (iv) duly posted in it ? Is it checked by the officer-in-charge ?

(b)

Are all erasures and alterations authenticated by the initials of the Controlling Officer ?

(ii)

Contingent Register-

(a)

Is a separate part of the book allotted for each kind of contingencies ?

(b)

Are all vouchers which do not accompany the bills which they vouch for duly cancelled by the Deputy Inspector ?

(c)

Are detailed bills in respect of countersigned contingencies punctually submitted to the Controlling Officer ?

(d)

Are all erasures and alterations authenticated by the initials of the Controlling Officer ?

(e)

When was the cash balance last tested ?

(iii)

Acquittance roll of establishment-

(a)

Are sums drawn on establishment bills promptly disbursed and payee's receipt taken-

(b)

Are undisbursed amounts duly refunded into the treasury ?

(iv)

Bill book for scholarships and stipends-

(a)

Are bills punctually submitted to the countersigning office ?

(b)

Are all bills in respect of the stipends and scholarships which are payable outside the Deputy Inspector's headquarters duly and promptly made over to the Post Office with the necessary money order forms ?

(c)

Are money order acknowledgment receipts filed in the book against each name ?

(v)

Registers of bills countersigned-

(a)

Grant-in-aid register.

(b)

Scholarship register.

(c)

Board schools salary register.

(d)

Government school's salary register.

Do these registers show that the business of counter signature is promptly despatched ?

(vi)

Is an account of service stamps maintained and does it show the exercise of a careful economy ?

Miscellaneous-

(i)

Register of letters received.

(ii)

Register of letters issued.

Are these registers maintained in the standard form ? Do they show that the correspondence of the office is promptly dealt with ?

(iii)

File register.

(iv)

Account of stationary received and issued.

(v)

Catalogue of books.

(vi)

Stock book of furniture.

(vii)

Register of ex-pupils of reformatory schools.

(viii)

Mirror of inspection.

Is the record of work shown satisfactory ? Are visits evenly distributed and does the Deputy Inspector exercise proper supervision over the work of the Sub-Inspectors and Assistant Sub-Inspectors under him ?

(ix)

Is there a causal leave register ?

(x)

Is there an establishment register ?

(xi)

Is the leave ledger kept up to date ?

2. Are village school matters bills properly checked by the Deputy Inspector (to be ascertained by test of a few bills selected at random) ?

3. Are the tour diaries of the Deputy Inspectors, the Sub-Inspectors and Assistant Sub-Inspectors submitted in the beginning of the month following that to which they relate ?

4. Are the circulars filed ? Are there separate files for Government and Departmental circulars ? Are they up to date ?

5. Is there a list of returns and reports due to the Divisional office with the dates for submission noted against each ? Are

such reports and returns submitted, punctually ?

6. Are manuals, codes and regulations up to date with correction slips posted ?

7. Is due economy observed in contract contingent expenditure ?

8. Are the service books complete with all entries duly attested ?

9. Are arrangements made for the periodical destruction of useless records ?

Part III

Offices of Government Colleges and Schools

1. Are the Account Rules observed and, in particular, are the following books or registers properly maintained in the prescribed forms and kept up to date :

(i)

Cash book-

(a)

Are the daily totals of the subsidiary registers (ii) to (vi) entered in it ?

(b)

Is it checked by the officer-in-charge ?

(c)

Are all erasures and alterations authenticated by the initials of the Controlling Officer ?

(ii)

Fee book-

(a)

Does it agree with the attendance register ?

(b)

Are the rules for the collection of fees observed ?

(c)

Are the daily collections duly deposited in the treasury ?

(iii)

Contingent register-

(a)

Is a separate part of the register allowed to each kind of contingencies ?

(b)

Are all vouchers which do not accompany the bills which they vouch for duly cancelled by the Drawing Officer ?

(c)

Are detailed bills in respect of countersigned contingencies punctually submitted to the Controlling Officer ?

(d)

Are all erasures and alterations authenticated by the initials of the Controlling Officer ?

(e)

When was the cash balance last tested ?

(iv)

Acquittance roll of establishment-

(a)

Are all sums drawn on establishment, bills promptly paid and payees receipts taken on the rolls ?

(b)

Are undisbursed amounts duly refunded as laid in the financial Rules ?

(v)

Acquittance roll of scholarship-holders-

(a)

Is there any avoidable delay in the preparation or submission of scholarship bills ?

(b)

Is payment made on the date on which the scholarship are drawn ?

(c)

Are undisbursed amounts duly refunded ?

(d)

Are payees receipts taken on rolls ?

(e)

Are deductions made for absence under the rules for disbursement of scholarships ?

(f)

Are there separate accounts for each kind of scholarship.

(vi)

Challan book-

Do the amounts deposited agree with the daily fee receipts ?

(vii)

Are arrangements for the periodical destruction of useless records.

(viii)

Is there a leave ledger and is it kept up to date ?

2. Is there a catalogue of books in the library ? Is it up to date and in proper form ?

3. Is there a loan book ? Does it show whether proper use is made of the library by students and teachers ?

4. Is the stock book of the furniture and apparatus kept up to date ?

5. Are the manuals and codes in the office kept up to date with correction slips properly posted and revisals duly noted ?

6. Are the circular files (Government and departmental) complete ? Have they been properly filed ?

7. Attendance register of pupils and students-

How kept ? Is the procedure for disposal of applications for leave as laid down in the rules regulating attendance in schools duly followed ?

8. Does the attendance register show that the teaching staff attend regularly and punctually ?

9. Admission register-

(a)

Has it been kept in the appropriate form with the necessary columns duly filled in ?

(b)

Is there agreement between it and the daily attendance register ?

10. Monthly returns-

(a)

Are they submitted punctually ?

(b)

Do they agree with the various registers ?

11. Governing Body's or Committee's (in case of high schools) proceeding book-

(a)

Does the Committee or Governing Body meet with reasonable frequency ?

(b)

Remarks.

12. Is there a casual leave register for the staff ?

13. Does the school (High school) strictly follow the orders in regard to the maintenance of a record of pupils' work set forth in Circular No. 23, dated the 28th November, 1913 ?

14. Games fund accounts-

(a)

Are the accounts of receipts and expenditure kept in a careful and orderly manner ?

(b)

Is due economy observed ?

15. Is the account of laboratory deposit (in college) properly kept ?

16. Is there a file of transfer certificate issued ? Is it complete ?

(To be compared with the attendance and admission registers).

17. Is there a file of transfer certificate received ? Is it complete ?

(To be compared with admission and attendance register).

18. Is there a register (in High schools) showing the career of pupils (report register) as required under rules ? Are

termly reports of pupils issued regularly and at the close of each term ?

19. Are the service books up to date with all entries duly attested ?

20. General remarks as to the condition of the office.

Hostels

21. Have the following registers been maintained and made use of-

(i)

Admission register;

(ii)

Attendance register;

(iii)

Inspection register;

(iv)

Punishment register;

(v)

Gate book for entering late return to hostel;

(vi)

Account book of hostel income and expenditure.

22. Are the hostel rules duly observed ?

23. Are seat rents, etc., duly deposited in the treasury and credited to Government ?

Appendix 10

Financial Responsibility

Sl. No.

Authority

Substance of orders

1.

Paragraph II of Letter No. 64 dated 9th

February, 1917, from the Director of Public Instruction, Assam,

to the Second Secretary to the Chief Commissioner of Assam.

In the Director's office the accounts and cash

and under the charge of the Superintendent who is not required to furnish security.

2.

Paragraph 1(2), of the Local Administration's

Orders No. 3368-E, dated 7th May, 1917.

In the office of the Inspectors and the

Inspectors of Schools the charge of the accounts and cash is with

the Head Assistants from whom a security of Rs. 100 must be

taken. No sum in excess of Rs. 80 should remain overnight in the

hands of the assistants. Should there on any special occasion be

a balance in excess of this sum, the Inspector or Inspectress

must arrange personally for the safe custody of the money, and be responsible for it.

3. (a)

Orders not traceable.

(a) Deputy Inspectors ; and

(b)

Assam Administration Letter No. 681 Misc.

4262-R, dated 6th October, 1962.

(b) Sub-Inspectors of Schools are not required to furnish security.

4.

Paragraph 1(4) of Local Administration's Order No. 3368-E, dated the 7th May, 1917.

The Office Assistants of Deputy Inspectors are exempted from the liability to furnish security, the responsibility for all the monetary transactions of their offices being charged directly upon the Deputy Inspectors themselves.

5.

Rule 2 of the rules for the keeping of accounts in Government Colleges and paragraph 1(1) of the Local Administration's Order No. 3368-E, dated 7th May, 1917.

In Government Colleges the Head Assistants are in charge of accounts and cash, etc., security being taken from, them at the following rates : Head Assistant Cotton College, Gauhati-Rs. 300. No sums should be allowed to remain overnight in the hands of the Head Assistants in excess of Rs. 270. In the event of there being a balance in excess of the aforesaid amounts on any special occasions, the Principal must arrange personally for the safe custody of the money and be responsible for it.

6.

Paragraph 3 of Eastern Bengal and Assam Government, Education Department Letter No. 8311-C, dated 7th July, 1907, and Local Administration's Letter No. 7219-E, dated 25th September, 1917.

The Headmasters and Headmistresses of Government High Schools or institutions of similar or higher status are exempted from the liability to furnish security.

7.

Clause (3) of Local Administration's Order No. 3368-E, dated 7th May, 1917, and Local Administration's Letter No. 7219-E, dated 24th September, 1917.

The Headmasters and Headmistresses of Government Middle Schools or institutions or similar or lower status are exempted from the liability to furnish security.

8.

Paragraph 3 of the Local Administration's Order No. 2871-E, dated 26th June, 1916 and Local Administration's Letter No. 7219-E, dated 24th September, 1917.

Assistants in all educational institutions (except colleges) are exempted from the liability to furnish security, the responsibility for all the monetary transactions of their offices being charged directly upon the officer-in-charge of the institutions.

Appendix 11

Private Tuition by Teachers in Government Service

1. Fundamental Rule 47 and Subsidiary Rule 41 read with the Serial No. 23 of Appendix 4 of Fundamental Rules and Assam Subsidiary Rules are applied to the case of remuneration of teachers in Government service for private tuition. For this purpose the calendar year is divided into three periods (1) from the beginning of the school year to the beginning of the summer vacation ; (2) the summer vacation; (3) from the end of the summer vacation to the end of the year. Separate sanction is required for private tuition for each of these periods.

2. Ordinarily teachers will not be permitted to undertake private tuition for more than one hour a day. In every case the authority sanctioning must be satisfied that the tuition can be undertaken without detriment to the teacher's ordinary

duties and that rate of remuneration proposed is fair and reasonable.

3. This power of sanctioning private tuition under these Rules up to a remuneration limit of Rs. 250 in each case during each of three periods mentioned in Rule 1 is given to the Inspectors of Schools in respect of officers serving under them. In all other cases of officers serving in institution directly under the control of the Director of Public Instruction and for amounts in excess of Rs. 250 in respect of officers under the control of the Inspectors of Schools the sanction of the Director will be necessary.

Such cases must be referred to the Director of Public instruction in one list with particulars required by Rule 2 in time to enable a decision to be given before the beginning of the period for which sanction to private tuition is sought.

Forms

From No. 1 is for the transfer or leaving certificate for Primary and Middle Vernacular schools.

From No. 2 is the application for admission into High and Middle English Schools.

From No. 3 is the transfer or leaving certificate for High and Middle English Schools.

From No. 4 is the Progress Report of less or half-fees pupils.

From No. 5 is the leave application in High and Middle Schools.

From No. 6 is the Register of leave application in High and Middle Schools.

From No. 7 is the order of rustication/expulsion in schools.

From No. 8 is the agreement to be executed by trainers selected for B.T. training from aided school.

From No. 9 is the agreement to be executed by trainees selected for primary or secondary school teachership training.

From No. 10 is the primary school teachership certificate.

From No. 11 is the Assam Middle School Examination Certificate.

From No. 12 is the Assam High Madrassa Examination Certificate.

From No. 13 is the Assam Intermediate Madrassa Examination Certificate.

From No. 14 is the Assam Senior Madrassa Final Examination Certificate.

From No. 15 is the Assam Secondary School Teachership Certificate.

From No. 16 is the Assam Primary and Secondary School Mistress (Junior) Certificate.

From No. 17 is the Assam Primary and Secondary School Mistresses (Senior) Certificate.

From No. 18 is the return of candidate for Primary Scholarship Examination.

From No. 19 is the submission of marks secured by candidate in Primary Scholarship Examination.

From No. 20 is the Progress Report of Scholarship holders in schools.

From No. 21 is the statement to accompany deposits in the Savings Bank of Provident Fund Money of the ministerial staff of the Assam Sanskrit Board ; and

From No. 22 is the declaration by depositors in the Assam Sanskrit Board Provident Fund for ministerial staff.

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